AIBE XXI
Paper analysis & answer audit

A study guide for the supplied AIBE XXII syllabus

100 questions • All four sets mapped • Every option discussed

What to study first

The seven core sections contribute 62 of 100 syllabus questions: Constitutional law, CPC, CrPC/BNSS, IPC/BNS, Evidence/BSA, Family law, and Contract/Specific Relief/Property/Negotiable Instruments. Adding Professional Ethics and Arbitration takes this study block to 70 marks.

The eight largest individual sections total 67 marks. These are syllabus allocations, not a prediction that particular questions will repeat.

What the key check found

The 400 set entries represent 100 distinct questions with reordered questions and options. All four supplied answer-key columns select the same answer text after mapping. Their consistency does not establish that every legal answer is correct.

Strong corrections or substantial defects: Set A Q9, Q30, Q44, Q59, Q75, Q76, Q77 and Q98. Other answers require limits or exceptions. Q40, Q46 and Q47 retain unresolved historical/quotation verification; Q80 has an attribution caveat.

Read the supplied-key answer separately from the legal-learning answer. This guide does not amend the examiner's marking key.

Scope and evidence

Prepared 13 October 2026 from the four uploaded AIBE XXI English papers, the uploaded final key carrying the exam date 7 June 2026, and the uploaded AIBE XXII syllabus image. This is one examination, so it cannot establish a multi-year PYQ trend. It analyses the law named in each question; older Acts are not silently replaced with newer section numbers.

All 100 questions received a doctrinal review. Online primary texts were used for the central disputed issues and selected cross-checks, not to independently re-verify every clause and historical attribution. Authority lines identify where to revise; the source appendix distinguishes accessed sources. Supported means the keyed option fits the stated rule, not that every possible qualification has been exhausted.

Syllabus weightage and question map

Counts below use one primary study category per question. The subject allocation is analytical, not an official question-by-question classification. Q19 (Article 23/minimum wages) is counted under Labour; Q47 (habeas corpus) under PIL; Q40 (Roman terminology) under Constitutional law. Q27 is counted under Evidence although its operative age-priority rule is in the JJ Act. These overlaps can shift subject counts without changing the 100-question total.

Subject	XXII image	XXI mapped	Set A questions
Constitutional law	10	10	3, 4, 12, 28, 36, 40, 53, 64, 78, 79
IPC / BNS	8	8	8, 25, 29, 35, 48, 52, 74, 86
CrPC / BNSS	10	10	6, 15, 18, 32, 38, 45, 62, 69, 75, 87
CPC	10	10	5, 17, 23, 39, 42, 50, 57, 61, 85, 99
Evidence / BSA	8	8	24, 27, 77, 82, 89, 92, 96, 98
ADR / Arbitration	4	4	37, 51, 67, 83
Family law	8	8	33, 34, 49, 60, 71, 72, 84, 100
Public interest litigation	4	4	20, 22, 46, 47
Administrative law	3	3	55, 80, 81
Professional ethics	4	4	13, 21, 31, 56
Company law	2	2	66, 93
Environmental law	2	2	10, 70
Cyber law	2	2	11, 16
Labour / Industrial law	4	4	1, 9, 19, 97
Torts / Motor vehicles / Consumer	5	5	2, 26, 30, 58, 90
Taxation	4	4	41, 73, 88, 94
Contract / Specific relief / Property / NI	8	8	43, 44, 54, 59, 63, 65, 68, 76
Land acquisition	2	2	7, 14
Intellectual property	2	2	91, 95
TOTAL	100	100	Each question counted once

High-value revision topics

Use the Acts to learn the exact trigger, authority, procedure, exception and consequence. Memorising a bare number without its trigger caused several traps in this paper.

Constitutional law | 10 syllabus questions

Articles 14, 21, 248-253, 368; basic structure; ordinances; advisory jurisdiction.

IPC / BNS | 8 syllabus questions

Conspiracy, theft, abduction, private defence; BNS punishments, defamation and terrorism.

CrPC / BNSS | 10 syllabus questions

Maintenance; definitions; arrest; appeal; search recording; default bail; judgment and plea-bargaining deadlines.

CPC | 10 syllabus questions

Execution objections; pleadings; parties; ex parte decrees; transfer; withdrawal; abatement; costs and service.

Evidence / BSA | 8 syllabus questions

Scope; presumptions; documents; electronic evidence; burden; circumstantial proof; age determination.

ADR / Arbitration | 4 syllabus questions

Sections 5, 16, 20 and 25: intervention, jurisdiction, place and default.

Family law | 8 syllabus questions

Parsi maintenance; Special/Christian marriage; UCC Uttarakhand; guardianship; dowry; Hindu adoption.

Public interest litigation | 4 syllabus questions

Relaxed standing; emergency medical care; PIL origins; habeas corpus.

Administrative law | 3 syllabus questions

Ombudsman/ARC; natural justice; definition of administrative law.

Professional ethics | 4 syllabus questions

Client funds; contingency fees; organisational conflict; disciplinary committee.

Company law | 2 syllabus questions

Fast-track mergers; minority remedies; standing thresholds.

Environmental law | 2 syllabus questions

EPA s.3 clause matching; Article 253 and the Air Act.

Cyber law | 2 syllabus questions

Electronic record definition; IT Act ss.43/66, civil versus criminal mental elements.

Labour / Industrial law | 4 syllabus questions

Minimum wages; industry test; forced labour; three Acts in the IR Code.

Torts / Motor vehicles / Consumer | 5 syllabus questions

Unfair contracts; eggshell skull; developer agreements; HSRP; PUC.

Taxation | 4 syllabus questions

Agricultural acquisition exemption; s.80D; previous/assessment year; money gifts.

Contract / Specific relief / Property / NI | 8 syllabus questions

Restraint of trade; notice for substituted performance; notes; public charity; enemy trading; mortgage; injunction; surety.

Land acquisition | 2 syllabus questions

Notice stages and deadlines; Scheduled Areas safeguards; SIA.

Intellectual property | 2 syllabus questions

Government use of patents; posthumous copyright term.

Answer-key issues to learn carefully

Set A	Key	Review finding
9	D	R rebuts the trust's position rather than explaining it; assertion-reason drafting is defective.
30	C	A development agreement does not by itself make the landowner a commercial joint venturer.
44	B	For s.20 substituted-performance cost recovery, the missing 30-day notice supports C; damages are a separate issue.
59	C	Section 18 also exempts qualifying public-benefit transfers from s.17 accumulation restrictions. D is stronger.
75	B	Fourteen days is the preliminary-inquiry period; refusal notification under s.176(2) is forthwith.
76	A	An agreed time extension without surety assent points to s.135 discharge; C is stronger on these facts.
77	C	C is undefined, but printed D says May be rather than the statutory may presume.
98	D	Private papers can be documents. None of the four options is categorically outside the definition.

More questions needing qualifications

Q2, 7, 8, 14, 20, 24, 25, 27, 28, 32, 35, 45, 63-66, 69, 71-73, 80, 84, 89-96 and 99 contain wording, scope, timing or exception issues discussed in the individual entries. Not every qualification means the keyed letter should change.

Three labels used in addition to Supported

Qualified: the keyed answer is intended or strongest, but wording or an exception matters. Disputed: the key or question has a substantial legal/logical defect. Unverified: the exact historical claim or quotation was not independently established.

How to revise this paper

1. Start with CPC and criminal procedure: practise locating the provision, then state the remedy and its conditions.

2. Study Constitutional law with a case-to-principle list. Link each Article to the event that activates it.

3. Pair old and new criminal Acts. In this paper, four questions expressly use BNS and six use BNSS. Answer the Act actually named.

4. Treat Evidence as definitions plus proof: document, presumption, burden, certificate and circumstantial chain.

5. Make a family-law timeline sheet. The applicable Act matters as much as the number of days, months or years.

6. Practise Contract/Property through short fact patterns: during versus after employment, variation versus forbearance, sale versus mortgage, damages versus substituted performance.

7. Revise Ethics and Arbitration as compact statutory units. Together they add eight syllabus marks to the 62-mark core.

8. Cover the remaining 30 marks. Small sections collectively matter; this single paper does not justify skipping them.

For each question, cover the explanation, attempt the answer, then explain one distractor in your own words. Mark uncertainty about the rule separately from uncertainty about the question's wording.

Recurring traps in this paper

Specific answer versus broad true answer: Q20. Correct rule versus wrong section: Q75. Undefined term versus typo: Q77. General rule versus exception: Q14 and Q84. Real power but wrong clause: Q10. Remedy versus prerequisites: Q44. Old case holding versus present law: Q96.

Q001 Minimum-wage commencement

Labour / Industrial law | Review: Supported

Same question: Set A Q1 (key A) | Set B Q60 (key B) | Set C Q67 (key C) | Set D Q2 (key A)

In the following question, a Statement is followed by two Conclusions, I and II. Statement : Section 5 of the Minimum Wages Act, 1948 gives a detailed procedure for fixing or revising minimum wages in respect of any scheduled employment. After considering the advice of the committees appointed, and all representations received by it before the date notified in the Gazette notification, the appropriate Government may by notification in the official gazette, fix or revise the minimum rates of wages. Conclusion I : If a date is specified in the notification, the minimum rates shall come into force from such date. Conclusion II : If no date is specified, then they shall come into force from the expiry of three months from the date of issue of the notification. In the context of the above Statement and Conclusions, which one of the following is correct ?

A. Both Conclusions I and II follow

B. Only Conclusion II follows

C. Neither Conclusion I nor II follows

D. Only Conclusion I follows

Supplied Set A key: A **Learning answer:** A

Why / option review: The notified date governs; without another date, the three-month default applies. A includes both rules. B wrongly excludes the notified-date rule; C excludes both; D excludes the default. Remember: specified date first, three months otherwise.

Revise: Minimum Wages Act 1948, s.5(2).

Q002 One-sided consumer contracts

Torts / Motor vehicles / Consumer | Review: Qualified

Same question: Set A Q2 (key C, D) | Set B Q75 (key C, D) | Set C Q84 (key A, C) | Set D Q91 (key A, D)

As per the Consumer Protection Act, 2019, what are one-sided agreements ?

A. Unilateral contracts

B. Quasi contracts

C. Unfair trade practices

D. Unconscionable

Supplied Set A key: C, D **Learning answer:** C/D in key; qualified

Why / option review: D describes unconscionability; C may describe imposing unfair terms as an unfair trade practice in context. The precise statutory category is often an unfair contract, which is missing. A means a promise accepted by performance, not necessarily an oppressive bargain. B means an obligation imposed by law without a conventional agreement. Do not treat every unequal contract as automatically unlawful.

Revise: Consumer Protection Act 2019, ss.2(46), 2(47); Pioneer Urban v. Govindan Raghavan (2019).

Q003 Separation of powers

Constitutional law | Review: Supported

Same question: Set A Q3 (key B) | Set B Q38 (key C) | Set C Q88 (key A) | Set D Q20 (key D)

Directions : The following question consists of two statements, one labelled as Assertion (A) and the other labelled as Reason (R). You are to examine these two statements carefully and decide if the Assertion (A) and the Reason (R) are individually true and if so, whether the Reason (R) is a correct explanation of the Assertion (A). Assertion (A) : The Constitution of India does not adopt a rigid separation of powers among the Legislature, Executive and Judiciary. Reason (R) : The constitutional framework incorporates a system of checks and balances, allowing limited functional overlap among the organs of the State. In the context of the Constitution of India, which one of the following is correct ?

A. (A) is false, but (R) is true.

B. Both (A) and (R) are true, and (R) is the correct explanation of (A).

C. (A) is true, but (R) is false.

D. Both (A) and (R) are true, but (R) is not the correct explanation of (A).

Supplied Set A key: B **Learning answer:** B

Why / option review: Both statements are true: functional overlap and checks explain why separation is not absolute. A wrongly rejects the assertion; C wrongly rejects the reason; D denies the explanatory link. Example: the executive is accountable to Parliament, while courts review legality.

Revise: Constitution; separation of powers and checks and balances.

Q004 Basic structure and Ninth Schedule

Constitutional law | Review: Supported

Same question: Set A Q4 (key B) | Set B Q7 (key C) | Set C Q74 (key A) | Set D Q4 (key B)

Under the Constitution of India, consider the following statements in the context of constitutional amendments : I. Judicial review extends to constitutional amendments. II. Laws inserted into the Ninth Schedule after 24th April, 1973 remain open to scrutiny for violation of the basic structure. III. Parliament's amending power under Article 368 is unlimited. Which of the above statements is/are correct ?

A. I, II and III

B. I and II

C. II and III

D. I only

Supplied Set A key: B **Learning answer:** B

Why / option review: I and II are true. Judicial review reaches amendments, and post-24 April 1973 Ninth Schedule insertions can be tested against basic structure. III is false: amendment power is limited. A and C include III; D omits II. Remember the cutoff date and the distinction between amendment and destruction of constitutional identity.

Revise: Article 368; Kesavananda Bharati (1973); I.R. Coelho (2007).

Q005 Third-party objection to attachment

CPC | Review: Supported

Same question: Set A Q5 (key A) | Set B Q51 (key D) | Set C Q38 (key D) | Set D Q12 (key C)

In execution proceedings governed by the Code of Civil Procedure, 1908, where property of the judgment-debtor is attached and a third party raises a claim asserting independent title, such claim :

A. Shall be adjudicated by the executing court.

B. Requires prior determination by the court which passed the decree.

C. Must be decided by instituting a separate civil suit.

D. Can be decided only after completion of execution proceedings.

Supplied Set A key: A **Learning answer:** A

Why / option review: The executing court normally adjudicates the claimant's title or interest. B incorrectly requires another court first; C incorrectly makes a separate suit the normal route; D delays the remedy until execution is over. There are statutory exceptions where the court refuses to entertain a claim, so 'never a separate suit' would also be too broad.

Revise: CPC, Order XXI Rule 58.

Q006 Summary maintenance

CrPC / BNSS | Review: Qualified

Same question: Set A Q6 (key D) | Set B Q40 (key B) | Set C Q6 (key A) | Set D Q31 (key A)

Which provision of the Code of Criminal Procedure (CrPC), 1973, provides a summary legal remedy for the maintenance of spouses, children, and parents who are unable to support themselves ?

A. Section 320

B. Section 107

C. Section 144

D. Section 125

Supplied Set A key: D **Learning answer:** D

Why / option review: D is the correct section. A, s.320, concerns compounding; B, s.107, preventive security for peace; C, s.144, urgent preventive orders under CrPC. The question loosely says 'spouses': s.125 specifically protects qualifying wives, children and parents, not husbands generally. Do not confuse CrPC 144 with BNSS 144.

Revise: CrPC s.125; compare BNSS s.144.

Q007 Land-acquisition notice

Land acquisition | Review: Qualified

Same question: Set A Q7 (key A) | Set B Q69 (key A) | Set C Q2 (key C) | Set D Q11 (key B)

Under the law relating to land acquisition under the relevant laws in India, which of the following statements is not true ?

A. All persons interested in the land in question shall appear personally before the Collector.

B. A minimum notice period of 30 days is to be given to all the persons interested.

C. The Collector shall publish the public notice on his website.

D. Such interested persons may file objections within 6 months of the notice having been issued.

Supplied Set A key: A **Learning answer:** A intended; wording needs care

Why / option review: A is false because appearance may be personal or through an authorised agent. B and C broadly match s.21's notice framework. D loosely describes the s.21 appearance/claims window, which is fixed between 30 days and six months, not a general six-month objection period. Objections to the preliminary notification under s.15 normally have 60 days. Learn these as different stages.

Revise: RFCTLARR Act 2013, ss.15 and 21.

Q008 Criminal conspiracy

IPC / BNS | Review: Qualified

Same question: Set A Q8 (key A) | Set B Q57 (key B) | Set C Q26 (key B) | Set D Q100 (key A)

Regarding the offence of 'Criminal Conspiracy' as defined under Section 120A of the Indian Penal Code (IPC), 1860, which of the following statements is legally accurate ?

A. The mere agreement between parties is sufficient to constitute the offence if the intended crime is punishable by death or rigorous imprisonment.

B. A minimum of five persons must participate to satisfy the legal definition.

C. A solitary individual's mere intention to commit a crime, even without an agreement with others, is sufficient for a conviction.

D. It is a substantive offence that is legally barred from being charged in conjunction with other substantive crimes.

Supplied Set A key: A **Learning answer:** A

Why / option review: A describes a situation in which agreement suffices, but the principle is wider: an agreement to commit an offence does not require a separate overt act under the proviso. B confuses conspiracy with the five-person requirement for unlawful assembly/dacoity; C lacks an agreement between persons; D wrongly excludes joint charges. Death/rigorous imprisonment is not the general threshold for defining conspiracy.

Revise: IPC ss.120A and 120B.

Q009 Charitable trust as industry

Labour / Industrial law | Review: Disputed

Same question: Set A Q9 (key D) | Set B Q31 (key A) | Set C Q81 (key C) | Set D Q50 (key B)

Directions : The following question consists of two statements, one labelled as Assertion (A) and the other labelled as Reason (R). You are to examine these two statements carefully and decide if the Assertion (A) and the Reason (R) are individually true and if so, whether the Reason (R) is a correct explanation of the Assertion (A). Assertion (A) : The respondent was engaged as a Safai Karamchari in a charitable trust. The dispute originated when he was terminated due to repeated absence from duty. The trust challenged the award on the grounds that it was not an 'industry' under Section 2(j) of the Industrial Disputes Act, 1947, and therefore the worker was not a workman, making Section 25-F inapplicable. Reason (R) : The trust engaged in multifarious activities including commercial ventures and hired employees for commercial and charitable activities in an organized manner with proper remuneration. In the context of the above Assertion and Reason under the Industrial Disputes Act, 1947, which one of the following is correct ?

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A).

B. (A) is true, but (R) is false.

C. (A) is false, but (R) is true.

D. Both (A) and (R) are true, and (R) is the correct explanation of (A).

Supplied Set A key: D **Learning answer:** D in key; assertion-reason defect

Why / option review: Organised activity with paid workers may qualify as industry despite a charitable label. However, R rebuts the trust's objection; it does not logically explain why the trust made that objection. A is more defensible if the assertion merely reports the litigation facts; C becomes arguable if it asserts the trust's legal conclusion. B wrongly denies R. Learn the industry test; do not memorise D as sound assertion-reason logic.

Revise: Industrial Disputes Act s.2(j); Bangalore Water Supply v. A. Rajappa (1978).

Q010 Environmental programme

Environmental law | Review: Supported

Same question: Set A Q10 (key C) | Set B Q8 (key D) | Set C Q75 (key A) | Set D Q3 (key D)

Which of the following is included in the Central Government's power under Section 3(2)(ii) of the Environment (Protection) Act, 1986 ?

A. Collection and dissemination of information in respect of matters relating to environmental pollution

B. Laying down standards for the quality of the environment in its various aspects

C. Planning and execution of a nation-wide programme for the prevention, control and abatement of environmental pollution

D. Carrying out and sponsoring investigations and research relating to problems of environmental pollution

Supplied Set A key: C **Learning answer:** C

Why / option review: C matches clause (ii), the nationwide programme power. A is collection/dissemination under clause (xiii); B concerns environmental-quality standards under clause (iii); D concerns research under clause (ix). All four describe real powers, but only C answers the specified clause.

Revise: Environment (Protection) Act 1986, s.3(2).

Q011 Electronic record

Cyber law | Review: Supported

Same question: Set A Q11 (key A) | Set B Q81 (key C) | Set C Q49 (key B) | Set D Q85 (key B)

Under the Information Technology Act, 2000, the term 'electronic record' includes which of the following ? I. Data stored in digital form II. Image or sound stored or transmitted electronically III. Information generated in microfilm or computer-generated microfiche IV. Information recorded only on paper without electronic processing Which of the above are correct ?

A. I, II and III

B. II, III and IV

C. I, II, III and IV

D. I and II

Supplied Set A key: A **Learning answer:** A

Why / option review: I, II and III fit the definition. IV is purely paper-based and does not qualify merely by being information. B and C include IV; D wrongly excludes microfilm/computer-generated microfiche. The statutory definition is broader than an ordinary computer file.

Revise: IT Act 2000, s.2(1)(t).

Q012 Pension cutoff and equality

Constitutional law | Review: Supported

Same question: Set A Q12 (key D) | Set B Q71 (key B) | Set C Q28 (key B) | Set D Q98 (key B)

In the context of the Constitution of India, a pension scheme differentiates between employees retiring before and after a specified cut-off date. Those excluded challenge the classification as arbitrary. The constitutional issue would primarily attract :

A. Legislative competence of the State

B. Doctrine of eclipse

C. Doctrine of severability

D. Article 14 and the principle of classification

Supplied Set A key: D **Learning answer:** D

Why / option review: D identifies the question of reasonable classification and arbitrariness. A asks whether the legislature has power over a subject; B concerns eclipse of inconsistent pre-Constitution laws; C concerns separating invalid provisions. A cutoff is not automatically invalid: the justification and pension scheme matter.

Revise: Article 14; D.S. Nakara v. Union of India (1983).

Q013 Misappropriating client funds

Professional ethics | Review: Supported

Same question: Set A Q13 (key D) | Set B Q53 (key B) | Set C Q21 (key D) | Set D Q69 (key D)

The Supreme Court of India in Harish Chandra Tiwari v. Baiju, (2002) 2 SCC 67, while considering the appropriate punishment for misappropriation of a client's money by an advocate, held that :

A. A monetary penalty equal to double the amount misappropriated is the appropriate sanction under the Act.

B. Reprimand is the appropriate punishment for a first-time misappropriation, since removal from the roll would be disproportionate.

C. Suspension from practice for a period of five years is the standard sanction for misappropriation of client funds.

D. Misappropriation of a client's money constitutes one of the gravest forms of professional misconduct and ordinarily warrants removal of the advocate's name from the State roll.

Supplied Set A key: D **Learning answer:** D

Why / option review: D captures the gravity and the removal imposed in this case. A invents a standard double-money sanction; B invents an automatic first-offence reprimand; C invents a fixed five-year rule. Lesser sanctions can depend on mitigating facts in other cases, so removal is not a mechanical rule for every temporary retention.

Revise: Advocates Act s.35; Harish Chandra Tiwari v. Baiju (2002), especially punishment discussion.

Q014 Acquisition of tribal land

Land acquisition | Review: Qualified

Same question: Set A Q14 (key C) | Set B Q9 (key D) | Set C Q14 (key D) | Set D Q58 (key C)

A State Government plans to acquire 50 acres of Scheduled Tribes (ST) land for an industrial park. As per the applicable law, the following steps are proposed : (i) Preliminary notification (ii) Social Impact Assessment (SIA) (iii) Gram Sabha consultation/consent (iv) Final notification Which of the following statements is correct ?

A. Final notification can be issued without Gram Sabha, with owner consent only.

B. Gram Sabha is advisory only; consent is not needed for public projects.

C. SIA and Gram Sabha consultation/consent are mandatory for ST land; acquisition can't proceed without consent.

D. Final notification can come before SIA but after preliminary notification.

Supplied Set A key: C **Learning answer:** C intended; overbroad

Why / option review: C reflects the intended protective approach, especially prior consent in Scheduled Areas. A and B wrongly dispense with required community consent; D puts the process in the wrong order. But ST ownership alone is not identical to land in a Scheduled Area, and s.9 provides an SIA exemption in specified urgency cases. Do not learn C's absolute wording as universal law.

Revise: RFCTLARR Act 2013, ss.4-9 and 41.

Q015 Definition of bailable offence

CrPC / BNSS | Review: Supported

Same question: Set A Q15 (key C) | Set B Q59 (key D) | Set C Q68 (key D) | Set D Q25 (key D)

Under the Code of Criminal Procedure (CrPC), 1973, which specific provision provides the legal definition for a 'Bailable Offence' ?

A. Section 2(h)

B. Section 2(x)

C. Section 2(a)

D. Section 2(c)

Supplied Set A key: C **Learning answer:** C

Why / option review: C, s.2(a), defines bailable offence. A, s.2(h), defines investigation; B, s.2(x), defines warrant-case; D, s.2(c), defines cognizable offence. Bailable and cognizable answer different questions: bail entitlement versus arrest/investigation powers.

Revise: CrPC s.2.

Q016 Civil versus criminal computer misuse

Cyber law | Review: Supported

Same question: Set A Q16 (key D) | Set B Q48 (key B) | Set C Q51 (key B) | Set D Q48 (key B)

The Information Technology Act, 2000, distinguishes between civil liability and criminal liability in cases of misuse of computer resources. In which of the following situations would such conduct attract criminal punishment rather than mere compensation ?

A. When the damage to computer resources exceeds a prescribed monetary limit

B. When the affected party chooses to initiate criminal proceedings

C. When access to a computer system is without permission, irrespective of intent

D. When the act is done dishonestly or fraudulently in addition to unauthorised access

Supplied Set A key: D **Learning answer:** D

Why / option review: D adds the dishonest or fraudulent element needed under s.66 for acts referred to in s.43. A invents a monetary trigger; B confuses the complainant's choice with statutory ingredients; C omits the required mental element. Unauthorised access can attract civil consequences without automatically proving the s.66 offence.

Revise: IT Act ss.43 and 66.

Q017 Striking pleadings

CPC | Review: Supported

Same question: Set A Q17 (key A) | Set B Q24 (key A) | Set C Q42 (key C) | Set D Q51 (key A)

In accordance with the provisions of the Code of Civil Procedure, 1908, where a court, while examining pleadings, finds certain averments to be unnecessary and capable of prejudicing or delaying the fair trial, the court, in such a case, may :

A. Strike out such pleadings at any stage of proceedings.

B. Ignore such pleadings without passing any order.

C. Direct amendment only after trial begins.

D. Reject the plaint in entirety.

Supplied Set A key: A **Learning answer:** A

Why / option review: A permits striking unnecessary, scandalous, frivolous, vexatious or prejudicial matter at any stage. B is not the specified procedural remedy; C imposes a nonexistent trial-start restriction; D confuses striking portions with rejection of a plaint under Order VII Rule 11.

Revise: CPC, Order VI Rule 16.

Q018 BNSS commencement

CrPC / BNSS | Review: Supported

Same question: Set A Q18 (key D) | Set B Q70 (key A) | Set C Q60 (key A) | Set D Q40 (key B)

On which specific date did the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, officially come into force, replacing the Code of Criminal Procedure, 1973 ?

A. August 15, 2023

B. January 1, 2024

C. December 25, 2023

D. July 1, 2024

Supplied Set A key: D **Learning answer:** D

Why / option review: D, 1 July 2024, is the commencement date. C is the date of presidential assent to the enactment; A and B are not commencement dates. Repeal does not erase savings for pending proceedings. Distinguish enactment, publication and commencement.

Revise: BNSS commencement notification, 23 February 2024.

Q019 Forced labour and minimum wages

Labour / Industrial law | Review: Supported

Same question: Set A Q19 (key C) | Set B Q61 (key A) | Set C Q85 (key A) | Set D Q15 (key B)

Which is the landmark case which expanded the scope of Article 23 of the Constitution of India ?

A. Glaxo Laboratories v. Presiding Officer, Labour Court, Meerut, (1984) 1 SCC 1

B. Vishaka v. State of Rajasthan, (1997) 6 SCC 241

C. PUDR v. Union of India, (1982) 3 SCC 235

D. M.C. Mehta v. State of Tamil Nadu, (1996) 6 SCC 756

Supplied Set A key: C **Learning answer:** C

Why / option review: C expanded forced-labour protection, including economic compulsion and payment below minimum wages. A concerns industrial misconduct/standing orders; B, Vishaka, concerns workplace sexual harassment; D concerns child labour and rehabilitation. This question overlaps labour law, constitutional law and PIL; it is counted under labour here.

Revise: Article 23; People's Union for Democratic Rights v. Union of India (1982).

Q020 Emergency treatment

Public interest litigation | Review: Qualified

Same question: Set A Q20 (key A) | Set B Q41 (key B) | Set C Q10 (key C) | Set D Q9 (key C)

The case of Parmanand Katara v. Union of India (1989) is primarily associated with which of the following rights ?

A. Right to emergency medical care

B. Right to clean and healthy environment

C. Right to speedy trial

D. Right to life and personal liberty

Supplied Set A key: A **Learning answer:** A

Why / option review: A is the most specific answer: immediate medical assistance should not wait for procedural formalities. D is also the broader constitutional foundation, but is less precise. B concerns environmental rights; C concerns speedy justice. An option can be generally true yet not be the best answer to the question.

Revise: Parmanand Katara v. Union of India (1989); Article 21.

Q021 Contingency fees

Professional ethics | Review: Supported

Same question: Set A Q21 (key C) | Set B Q15 (key A) | Set C Q1 (key B) | Set D Q83 (key A)

In the following question, a Statement is followed by two Conclusions, I and II. Statement : The Bar Council of India derives its rule-making power from Section 49(1)(c) of the Advocates Act, 1961, which authorises it to frame rules governing professional conduct and etiquette to be observed by advocates. Rule 20 framed thereunder categorically bars an advocate from stipulating for, or receiving, any fee whose quantum is dependent upon the outcome of litigation, or from entering into any arrangement to share in its proceeds. An advocate who contravenes this Rule is liable to be proceeded against under Section 35 of the Act. Conclusion I : An advocate may lawfully enter into an outcome-linked fee arrangement so long as the client's written consent is obtained prior to the engagement. Conclusion II : An advocate who violates the prohibition on contingency-based fees may face disciplinary action under the Advocates Act, 1961. In the context of the above Statement and Conclusions, which one of the following is correct ?

A. Neither Conclusion I nor II follows

B. Both Conclusions I and II follow

C. Only Conclusion II follows

D. Only Conclusion I follows

Supplied Set A key: C **Learning answer:** C

Why / option review: Only II follows. A denies the disciplinary consequence; B wrongly validates outcome-linked fees with written consent; D accepts only the incorrect conclusion. Client consent does not override the professional prohibition. A fixed lawful fee differs from taking a share of the litigation proceeds.

Revise: BCI professional-conduct Rule 20; Advocates Act ss.35 and 49.

Q022 Relaxed standing

Public interest litigation | Review: Supported

Same question: Set A Q22 (key B) | Set B Q80 (key C) | Set C Q94 (key C) | Set D Q78 (key A)

Under the constitutional framework of India, the Supreme Court gradually relaxed the traditional rule of locus standi, thereby allowing public-spirited individuals to approach the Court for enforcement of fundamental rights of others. This development is most closely associated with :

A. Judicial review of administrative action.

B. The evolution of Public Interest Litigation.

C. Expansion of writ jurisdiction under Article 226.

D. Enforcement of fundamental rights through individual petitions alone.

Supplied Set A key: B **Learning answer:** B

Why / option review: B is the doctrinal development described. A is broader administrative judicial review; C refers to High Court writ jurisdiction although the question focuses on Supreme Court standing; D contradicts representative public-interest petitions. PIL allows suitable persons to seek relief for those unable to approach the court themselves.

Revise: Articles 32 and 226; development of PIL.

Q023 Wrong defendant

CPC | Review: Supported

Same question: Set A Q23 (key D) | Set B Q87 (key C) | Set C Q80 (key B) | Set D Q33 (key B)

Under the Code of Civil Procedure, 1908, where a suit is instituted against a person who is subsequently found to have been wrongly impleaded as a defendant, the court may :

A. Return the plaint on the ground of mis-joinder of parties.

B. Dismiss the suit as not maintainable.

C. Direct the plaintiff to institute a fresh suit.

D. Permit substitution or addition of the proper defendant.

Supplied Set A key: D **Learning answer:** D

Why / option review: D is the best corrective route: strike an improperly joined party and add the proper one. A confuses party defects with return of plaint for jurisdiction; B treats a usually curable defect as fatal; C unnecessarily demands a fresh suit. Joining necessary parties and limitation still require care.

Revise: CPC, Order I Rule 10.

Q024 BSA and tribunals

Evidence / BSA | Review: Qualified

Same question: Set A Q24 (key A) | Set B Q16 (key C) | Set C Q91 (key C) | Set D Q29 (key B)

The Bharatiya Sakshya Adhiniyam, 2023 is not applicable in which case ?

A. Arbitral Tribunal

B. National Company Law Tribunal

C. National Green Tribunal

D. Income Tax Appellate Tribunal

Supplied Set A key: A **Learning answer:** A intended; non-exclusive wording

Why / option review: A is expressly excluded by BSA's application clause. But B and C operate under special procedural provisions and are not simply bound by ordinary evidence rules; D also follows a specialised tribunal framework. Thus A is the clearest express BSA exclusion, not proof that BSA strictly governs every other listed tribunal. The question should have asked for the express exclusion.

Revise: BSA s.1(2); Arbitration Act s.19; Companies Act s.424; NGT Act s.19.

Q025 Forfeiture and organised crime

IPC / BNS | Review: Qualified

Same question: Set A Q25 (key A) | Set B Q83 (key A) | Set C Q70 (key B) | Set D Q59 (key A)

Under the Bharatiya Nyaya Sanhita (BNS), 2023, 'Forfeiture of Property' is listed as a punishment. In which specific case is this most commonly applied ?

A. Organized Crime (Section 111)

B. Offences involving simple hurt or minor physical injury

C. Instances of minor or petty theft

D. Cases of rash or negligent driving

Supplied Set A key: A **Learning answer:** A intended; section link is loose

Why / option review: A is the strongest contextual fit because organised crime generates illicit assets. B, C and D are not the characteristic asset-confiscation setting. However, s.111 does not itself establish a general automatic forfeiture sentence for every organised-crime conviction. Separate punishment, attachment and confiscation powers; the words 'most commonly' lack a precise statutory test.

Revise: BNS ss.4 and 111; BNSS attachment/forfeiture provisions.

Q026 Eggshell skull rule

Torts / Motor vehicles / Consumer | Review: Supported

Same question: Set A Q26 (key C) | Set B Q99 (key C) | Set C Q11 (key B) | Set D Q23 (key D)

Which of the following statements is not an example of the eggshell skull rule as per the law of torts ?

A. Nervous shock cases are also consistent with this principle. The rule is that if injury from nervous shock is reasonably foreseeable to an ordinarily strong-nerved person situated in the position of the claimant, the defendant is liable for the full extent of the shock.

B. A boy kicked another from across the aisle in the classroom. It turned out that the victim had an unknown microbial condition that was irritated, and resulted in him entirely losing the use of his leg.

C. 'A' underwent an appendectomy in a hospital. Despite the surgery going as planned, she continued to experience abdominal pain. It was later discovered that a needle had been left inside her abdomen, leading to further surgeries and prolonged suffering.

D. A man had a heart attack and died after being bruised in the chest during a rear-end car accident.

Supplied Set A key: C **Learning answer:** C

Why / option review: C concerns negligent surgery and a retained needle, not unusually severe harm caused by a pre-existing vulnerability. A can fit once the threshold for foreseeable psychiatric injury is met. B involves a hidden condition amplifying injury; D involves unusually serious consequences of chest injury. Liability for extent of harm differs from proving negligence itself.

Revise: Tort: take the victim as found; distinguish res ipsa loquitur.

Q027 Age determination

Evidence / BSA | Review: Qualified

Same question: Set A Q27 (key D) | Set B Q89 (key D) | Set C Q47 (key A) | Set D Q18 (key A)

Read the following statements and choose the correct option. Statement I : Ossification test is the final test to analyze bone fusion for estimating the age of a juvenile as per law. Statement II : Statutory documents like a birth certificate will be given precedence to determine the juvenile. In the context of the above statements under the Indian Evidence Act, 1872, which one of the following options is correct ?

A. Both Statements I and II are true

B. Only Statement I is true

C. Both Statements I and II are false

D. Only Statement II is true

Supplied Set A key: D **Learning answer:** D

Why / option review: II is true: prescribed documentary evidence takes priority. I is false if 'final test' means conclusive proof; medical age estimation is a fallback, not an infallible age certificate. A and B wrongly endorse conclusiveness; C rejects documentary priority. The wording could mean last-resort test, in which case I is ambiguous. This is primarily a JJ Act rule, not an Evidence Act hierarchy.

Revise: Juvenile Justice Act 2015, s.94(2).

Q028 Repeated ordinances

Constitutional law | Review: Qualified

Same question: Set A Q28 (key D) | Set B Q67 (key A) | Set C Q98 (key C) | Set D Q68 (key D)

Under constitutional jurisprudence in India, repeated re-promulgation of Ordinances without placing them before the Legislature was described by the Supreme Court as a "fraud on the Constitution" in which decision ?

A. Krishna Kumar Singh v. State of Bihar, (2017) 3 SCC 1

B. R.C. Cooper v. Union of India, AIR 1970 SC 564

C. Shamsher Singh v. State of Punjab, AIR 1974 SC 2192

D. D.C. Wadhwa v. State of Bihar, AIR 1987 SC 579

Supplied Set A key: D **Learning answer:** D

Why / option review: D is the classic decision identifying routine re-promulgation as a constitutional fraud. A later reaffirmed and developed the principle, so it is also relevant and the wording is not perfectly exclusive. B concerns bank nationalisation/property rights; C concerns the constitutional role of the President/Governor and ministerial advice. Remember original landmark versus later reaffirmation.

Revise: D.C. Wadhwa (1987); Krishna Kumar Singh (2017).

Q029 Theft

IPC / BNS | Review: Supported

Same question: Set A Q29 (key D) | Set B Q58 (key A) | Set C Q92 (key C) | Set D Q77 (key A)

Pursuant to the definition provided in Section 378 of the Indian Penal Code (IPC), 1860, which of the following constitutes an essential element of the offence of 'Theft' ?

A. The requirement that the property must be removed from a public location exclusively

B. The unauthorized movement of immovable property without the owner's consent

C. The employment of physical force or criminal violence against a person

D. The movement of movable property out of a person's possession without their consent

Supplied Set A key: D **Learning answer:** D

Why / option review: D states the relevant movement/possession/no-consent element; dishonest intention is also necessary though omitted from the option. A wrongly requires a public place; B says immovable property; C imports force, more relevant to robbery. Property attached to the earth can become capable of theft after severance.

Revise: IPC s.378.

Q030 Landowner and builder

Torts / Motor vehicles / Consumer | Review: Disputed

Same question: Set A Q30 (key C) | Set B Q52 (key B) | Set C Q3 (key A) | Set D Q76 (key C)

Whether a landowner who enters into a Joint Development Agreement with a builder, contributing land in exchange for 50% of the developed property and a monetary deposit can file a complaint under the Consumer Protection Act, 2019 alleging construction defects and delay ? Which of the following statements is most accurate ?

A. The landowner is a consumer unless profit motive is proven.

B. The landowner is a consumer as he did not construct himself.

C. The landowner is not a consumer as the transaction constitutes a commercial joint venture.

D. The landowner is a consumer if defects exist, irrespective of the nature of the transaction.

Supplied Set A key: C **Learning answer:** C in key; facts insufficient

Why / option review: A landowner receiving constructed space can be a consumer; a development agreement is not automatically a true commercial joint venture. C needs further facts about control, business participation and purpose. A is closest to a qualified consumer approach but oversimplifies the test. B wrongly makes non-construction decisive; D ignores commercial-purpose exclusions. No option is safely unconditional on the facts supplied.

Revise: Consumer Protection Act s.2(7); Faqir Chand Gulati v. Uppal Agencies (2008).

Q031 Advocate on executive committee

Professional ethics | Review: Qualified

Same question: Set A Q31 (key A) | Set B Q46 (key C) | Set C Q43 (key D) | Set D Q80 (key C)

Under Rule 8 of the Standards of Professional Conduct and Etiquette framed by the Bar Council of India, an advocate is prohibited from appearing before any court, tribunal or authority for or against an organisation or institution of which he is a member of its :

A. Executive Committee

B. General Body

C. Sub-Committee

D. Advisory Committee

Supplied Set A key: A **Learning answer:** A

Why / option review: A is the prohibited organisational role, subject to stated exceptions. B, C and D do not by their labels alone establish membership of the executive body, though a differently named body may perform that role. Learn the substance of executive control and the exceptions for specified unpaid appearances; do not extend the rule to every ordinary member.

Revise: BCI Rules, Part VI Chapter II, Rule 8 in the published conduct rules.

Q032 Appeal from second-class magistrate

CrPC / BNSS | Review: Qualified

Same question: Set A Q32 (key A) | Set B Q11 (key C) | Set C Q8 (key B) | Set D Q27 (key A)

A Magistrate of the Second Class passes a sentence of one month's imprisonment. The accused wants to appeal. Based on the Code of Criminal Procedure (CrPC), 1973, which of the following is true ?

A. The accused is entitled to file an appeal before the Court of Session.

B. An appeal lies only if a fine was also imposed.

C. The accused may prefer an appeal directly to the High Court.

D. No appeal is maintainable in this specific instance.

Supplied Set A key: A **Learning answer:** A

Why / option review: A is the ordinary route to the Sessions Court. B invents a requirement of an additional fine; C chooses the wrong first appellate court. D overextends the petty-case bar. The one-month bar associated with certain other courts cannot simply be applied to every second-class magistrate's sentence. Special situations, including a qualifying summary trial or guilty plea, need separate examination.

Revise: CrPC ss.374(3) and 376.

Q033 Parsi permanent maintenance

Family law | Review: Supported

Same question: Set A Q33 (key D) | Set B Q91 (key D) | Set C Q76 (key C) | Set D Q8 (key B)

Under the Parsi Marriage and Divorce Act, 1936, for what duration can maintenance be awarded ?

A. For a fixed term not exceeding ten years

B. For a maximum of five years only

C. For a period determined solely by the Registrar

D. For a term not exceeding the life of the plaintiff

Supplied Set A key: D **Learning answer:** D

Why / option review: D allows a period up to the plaintiff's life. A and B invent fixed ten/five-year ceilings; C transfers the decision to the Registrar instead of the court. Duration and amount are judicial determinations under the statute, subject to variation and other conditions.

Revise: Parsi Marriage and Divorce Act 1936, s.40.

Q034 Publishing in-camera proceedings

Family law | Review: Supported

Same question: Set A Q34 (key D) | Set B Q62 (key B) | Set C Q65 (key C) | Set D Q82 (key B)

Under the Special Marriage Act, 1954, what is the maximum fine that may be imposed for printing or publishing matter in contravention of provisions relating to in-camera proceedings ?

A. Fine up to five thousand rupees

B. Fine up to two thousand rupees

C. Fine up to five hundred rupees

D. Fine up to one thousand rupees

Supplied Set A key: D **Learning answer:** D

Why / option review: D is the statutory maximum of Rs.1,000 in the provision asked. A, B and C give different ceilings. In-camera means proceedings are private; it does not mean parties can freely publish the material. Answer the named Act rather than assuming a modern-looking penalty amount.

Revise: Special Marriage Act 1954, s.33.

Q035 Abduction and age

IPC / BNS | Review: Qualified

Same question: Set A Q35 (key D) | Set B Q20 (key B) | Set C Q52 (key C) | Set D Q28 (key D)

Under the provisions of Section 362 of the Indian Penal Code (IPC), 1860, which of the following is not a mandatory legal requirement (ingredient) to constitute the offence of 'Abduction' ?

A. Compelling or inducing a person to move from one place to another

B. The employment of physical force or the use of deceitful means

C. The classification of the act as a "continuing offence"

D. The person abducted must be a minor

Supplied Set A key: D **Learning answer:** D intended; C also problematic

Why / option review: D is the intended answer because abduction can involve an adult. A and B describe movement through force or deceit. C, describing abduction as continuing, is a doctrinal characteristic rather than a separately proved statutory ingredient. Since the question says 'mandatory ingredient', C is also contestable. Contrast abduction with kidnapping from lawful guardianship.

Revise: IPC s.362.

Q036 International obligations

Constitutional law | Review: Supported

Same question: Set A Q36 (key C) | Set B Q66 (key D) | Set C Q87 (key C) | Set D Q71 (key B)

Under the Constitution of India, Parliament enacts legislation to implement India's obligations under an international environmental agreement. The subject ordinarily falls within the State List and no resolution under Article 252 has been passed. The source of Parliament's competence would be :

A. Article 252

B. Article 249

C. Article 253

D. Article 250

Supplied Set A key: C **Learning answer:** C

Why / option review: C authorises legislation to implement international agreements, including on State List subjects. A requires State resolutions; B concerns a Rajya Sabha national-interest resolution; D concerns a national emergency. Match each exceptional parliamentary power to its trigger.

Revise: Constitution Articles 249, 250, 252 and 253.

Q037 Arbitrator's jurisdiction

ADR / Arbitration | Review: Supported

Same question: Set A Q37 (key A) | Set B Q56 (key A) | Set C Q89 (key A) | Set D Q34 (key B)

Read the following statements and choose the correct option in the light of the Arbitration and Conciliation Act, 1996. A dispute arises regarding jurisdiction of the arbitral tribunal. Statement I : The arbitral tribunal may rule on its own jurisdiction. Statement II : A plea that the tribunal lacks jurisdiction shall be raised not later than the submission of the statement of defence, unless the arbitral tribunal permits a later plea.

A. Both Statements I and II are true

B. Neither Statement I nor Statement II is true

C. Only Statement I is true

D. Only Statement II is true

Supplied Set A key: A **Learning answer:** A

Why / option review: Both statements are true: the tribunal can rule on jurisdiction and a jurisdiction plea normally accompanies or precedes the defence, with a justified later plea possible. B rejects both; C omits the timing rule; D denies competence-competence. Separability also means an arbitration clause may survive an attack on the main contract.

Revise: Arbitration and Conciliation Act 1996, s.16.

Q038 Recording search and seizure

CrPC / BNSS | Review: Supported

Same question: Set A Q38 (key B) | Set B Q4 (key B) | Set C Q4 (key D) | Set D Q94 (key A)

Under Section 105 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, what is now a mandatory requirement for the process of search and seizure conducted by the police ?

A. The presence of a Judicial Magistrate during the search

B. The documentation of the entire search and seizure process via audio-video electronic recording

C. The presence of at least five local residents as independent witnesses

D. The acquisition of a signed written confession from the occupant of the premises

Supplied Set A key: B **Learning answer:** B

Why / option review: B states the audio-video recording requirement. A invents mandatory physical judicial presence; C invents five independent witnesses; D wrongly requires a confession. Recording and forwarding the recording to the specified magistrate are distinct procedural duties. A search is not conditional on the occupant admitting guilt.

Revise: BNSS s.105.

Q039 Unserved defendant

CPC | Review: Supported

Same question: Set A Q39 (key A) | Set B Q33 (key C) | Set C Q57 (key B) | Set D Q32 (key C)

Under the provisions of the Code of Civil Procedure, 1908, where a decree is passed against multiple defendants, one of whom was not served with summons and had no opportunity to contest, such a defendant may seek relief :

A. By applying for setting aside the ex-parte decree.

B. Only by filing a separate suit.

C. Only through an appeal against decree.

D. Only through review before the same court.

Supplied Set A key: A **Learning answer:** A

Why / option review: A is the direct application to set aside an ex parte decree for non-service or sufficient cause. B wrongly insists on a fresh suit. C ignores this application although an appeal may also be available. D wrongly makes review the exclusive remedy. Relief affecting other defendants depends on whether the decree is separable.

Revise: CPC, Order IX Rule 13.

Q040 Roman-law terminology

Constitutional law | Review: Unverified

Same question: Set A Q40 (key B) | Set B Q98 (key B) | Set C Q16 (key C) | Set D Q19 (key C)

In Roman jurisprudence, the concept similar to the Rule of Law was referred to as :

A. Jus Gentium

B. Jus Naturale

C. Lex Regia

D. Jus Civile

Supplied Set A key: B **Learning answer:** B in key; historical equivalence unverified

Why / option review: B, jus naturale, means natural law and is the intended conceptual answer, but it is not an exact synonym for the modern rule of law. A, jus gentium, concerns law of peoples; C, lex regia, is associated with sovereign/imperial authority; D, jus civile, civil law of Roman citizens. Treat the claimed equivalence as an exam convention, not an established identity.

Revise: Roman jurisprudence terminology; supplied key only for the exact attribution.

Q041 Agricultural-land compensation

Taxation | Review: Supported

Same question: Set A Q41 (key D) | Set B Q86 (key D) | Set C Q61 (key B) | Set D Q37 (key B)

According to Section 10(37), of the Income-tax Act, 1961, compensation is received by an individual on compulsory acquisition of agricultural land which had been used for agricultural purposes by him prior to acquisition. What is the correct legal position ?

A. It is always taxable under the Act.

B. It is taxable only if it exceeds a prescribed limit.

C. It is taxable as business income.

D. It is exempt, subject to fulfilment of prescribed conditions.

Supplied Set A key: D **Learning answer:** D

Why / option review: D preserves the statutory conditions, including qualifying person, agricultural use and acquisition requirements. A wrongly says always taxable; B invents a single threshold test; C misclassifies the receipt as necessarily business income. Not every payment involving agricultural land automatically qualifies. This answer addresses the 1961 Act expressly named in the question.

Revise: Income-tax Act 1961, s.10(37).

Q042 Inter-district civil transfer

CPC | Review: Supported

Same question: Set A Q42 (key D) | Set B Q43 (key B) | Set C Q86 (key B) | Set D Q87 (key C)

Under the scheme of the Code of Civil Procedure, 1908, where proceedings are pending before a competent civil court, and an application is made seeking transfer of the case from one district to another district within the state, such transfer may be ordered :

A. Only upon agreement between the parties.

B. Only by the court in which the suit is pending.

C. Only after conclusion of trial.

D. By the High Court.

Supplied Set A key: D **Learning answer:** D

Why / option review: D is the High Court's transfer power within its territorial/subordinate-court framework. A wrongly makes consent indispensable; B gives the transferor court an exclusive power it lacks; C wrongly requires trial completion. A District Court's transfer power concerns courts subordinate to it, not an unrestricted power across other districts.

Revise: CPC s.24.

Q043 Post-employment non-compete

Contract / Specific relief / Property / NI | Review: Supported

Same question: Set A Q43 (key B) | Set B Q3 (key C) | Set C Q95 (key A) | Set D Q79 (key A)

Ramesh's job contract with M/s XYZ bars him from joining any rival software firm in India for three years post-resignation. But after resigning within three years, he joins a competitor. XYZ company filed a suit to enforce the restrictive clause. Under the Indian Contract Act, 1872, what is the legal position ?

A. Valid - three years is a reasonable period.

B. Void - restrains lawful profession after employment ends.

C. Valid - Ramesh agreed voluntarily.

D. Valid - protects the employer's business interest.

Supplied Set A key: B **Learning answer:** B

Why / option review: B is correct for this ordinary post-employment restraint. A wrongly treats three years as automatically reasonable and valid; C assumes consent cures statutory invalidity; D assumes business interest alone validates it. Confidentiality and protection of trade secrets are distinct issues. Compare Q68, where the negative covenant operates during the contract.

Revise: Indian Contract Act s.27.

Q044 Replacement contractor and notice

Contract / Specific relief / Property / NI | Review: Disputed

Same question: Set A Q44 (key B) | Set B Q1 (key C) | Set C Q53 (key C) | Set D Q54 (key C)

A contracts with B to construct a cold storage facility for ₹ 50 lakh within 6 months. After the expiry of the time period, B fails to perform the contract. A immediately hires C to complete the construction at ₹ 60 lakh and later files a suit against B claiming ₹ 10 lakh as the additional cost incurred. Which of the following statements is correct under the Specific Relief Act, 1963 ?

A. A must sue only for damages and not substituted performance.

B. A can recover ₹ 10 lakh because B breached the contract.

C. A cannot recover the cost because A did not give B prior notice.

D. A can recover only if the court first declares B guilty of breach.

Supplied Set A key: B **Learning answer:** C for s.20 cost recovery; B in key

Why / option review: C fits statutory substituted-performance recovery: ordinarily at least 30 days' written notice must precede replacement. B is not automatic merely because breach occurred. A wrongly excludes substituted performance as a remedy; D invents a prior court declaration requirement. Separate damages may still be recoverable under contract law, so C should not be read as barring every possible compensation claim.

Revise: Specific Relief Act s.20(1)-(4); Contract Act s.73.

Q045 Time to pronounce judgment

CrPC / BNSS | Review: Qualified

Same question: Set A Q45 (key B) | Set B Q14 (key B) | Set C Q63 (key C) | Set D Q30 (key B)

The Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, has introduced a specific timeframe for the delivery of a judgment after the conclusion of arguments. What is that timeframe ?

A. Within a strict period of 15 days

B. Within 30 days (extendable to 45 days)

C. Within 90 days, provided the reasons for delay are recorded

D. Within 60 days from the date of reserving the order

Supplied Set A key: B **Learning answer:** B

Why / option review: B matches the Sessions-trial provision: 30 days, extendable to 45 with written reasons. A and C give the wrong periods; D is not that rule. The stem is broad, so avoid assuming every criminal judgment is governed by precisely the same trigger and extension provision.

Revise: BNSS s.258(1); compare s.392.

Q046 Origin of PIL terminology

Public interest litigation | Review: Unverified

Same question: Set A Q46 (key D) | Set B Q37 (key D) | Set C Q15 (key C) | Set D Q1 (key A)

The term "Public Interest Litigation (PIL)" was first used by :

A. Justice P.N. Bhagwati

B. Justice V.R. Krishna Iyer

C. Prof. Upendra Baxi

D. Prof. Abram Chayes

Supplied Set A key: D **Learning answer:** D in key; first-use claim unverified

Why / option review: D is the expected attribution. A and B were central to Indian PIL's development, not the asserted American academic origin. C is an important Indian scholar of social-action litigation. Chayes' influential work concerns public-law litigation; 'first used the term PIL' is a stronger historical claim not independently established here.

Revise: Abram Chayes, The Role of the Judge in Public Law Litigation (1976).

Q047 Value of habeas corpus

Public interest litigation | Review: Unverified

Same question: Set A Q47 (key C) | Set B Q18 (key B) | Set C Q33 (key D) | Set D Q21 (key C)

In which of the following cases did Lord Wright observe that "the incalculable value of habeas corpus is that it enables the immediate determination of the applicant's freedom" ?

A. Attorney General for Hong Kong v. Ng Yuen Shiu (1983) 2 AC 629

B. Attorney General for New South Wales v. Trethowan (1932) AC 526

C. Greene v. Secretary of State for Home Affairs (1942) AC 284

D. Bugdaycay v. Secretary of State for the Home Department (1987) AC 514

Supplied Set A key: C **Learning answer:** C in key

Why / option review: C is the supplied attribution. A concerns legitimate expectation; B concerns constitutional manner-and-form restrictions; D concerns immigration/asylum judicial review. Habeas corpus tests the lawfulness of detention promptly. Use C for this paper, while keeping the exact quotation and attribution as not independently verified.

Revise: Greene v. Secretary of State for Home Affairs [1942] AC 284; exact quotation not checked in original report.

Q048 Defamation punishment

IPC / BNS | Review: Supported

Same question: Set A Q48 (key A) | Set B Q39 (key A) | Set C Q90 (key B) | Set D Q41 (key B)

Under the provisions of the Bharatiya Nyaya Sanhita (BNS), 2023, what is the current range of punishments available to a court for the offence of 'Defamation' ?

A. Simple imprisonment, or fine, or both, or Community Service

B. Rigorous imprisonment for 5 years

C. Only a fine

D. Only an apology in open court

Supplied Set A key: A **Learning answer:** A

Why / option review: A includes simple imprisonment, fine, both, or community service. B invents five years' rigorous imprisonment; C removes alternative sentences; D is not the statutory punishment. The simple-imprisonment maximum is two years. Civil defamation remedies are a separate topic.

Revise: BNS s.356(2).

Q049 Christian marriage hours

Family law | Review: Supported

Same question: Set A Q49 (key B) | Set B Q76 (key C) | Set C Q24 (key A) | Set D Q64 (key C)

Under the Indian Christian Marriage Act, 1872, between which hours must a marriage generally be solemnized ?

A. Between five in the morning and six in the evening

B. Between six in the morning and seven in the evening

C. Between seven in the morning and eight in the evening

D. Between six in the morning and nine in the evening

Supplied Set A key: B **Learning answer:** B

Why / option review: B gives the general window, 6 a.m. to 7 p.m. A, C and D shift one or both limits. Statutory exceptions exist for specified permissions/licences and traditions, so learn this as the general rule rather than an absolute prohibition on every other time.

Revise: Indian Christian Marriage Act 1872, s.10.

Q050 Withdrawal and fresh suit

CPC | Review: Supported

Same question: Set A Q50 (key D) | Set B Q77 (key D) | Set C Q56 (key B) | Set D Q22 (key B)

Which of the following statements are correct with reference to withdrawal and abandonment of suits under the Code of Civil Procedure, 1908 ? I. A plaintiff may withdraw or abandon a suit subject to the provisions of law. II. Institution of a fresh suit on the same cause of action requires permission of the court. III. Withdrawal of a suit without permission of the court to institute a fresh suit bars a subsequent suit on the same cause of action. IV. The court must grant permission whenever such request is made. Which of the above statements are correct ?

A. I, III and IV

B. I, II, III and IV

C. II, III and IV

D. I, II and III

Supplied Set A key: D **Learning answer:** D

Why / option review: I, II and III describe the normal position; IV is false because leave is not automatic. A, B and C all include IV. Withdrawal without liberty ordinarily bars a fresh suit on the same subject matter; formal defect or sufficient grounds must support permission. Court permission is different from merely deciding to withdraw.

Revise: CPC, Order XXIII Rule 1.

Q051 Respondent fails to defend arbitration

ADR / Arbitration | Review: Supported

Same question: Set A Q51 (key A) | Set B Q90 (key A) | Set C Q25 (key C) | Set D Q7 (key C)

According to Section 25(b) of the Arbitration and Conciliation Act, 1996, where the respondent fails to submit his statement of defence without sufficient cause, the arbitral tribunal shall :

A. Continue the proceedings without treating such failure as admission.

B. Proceed to decide the dispute treating the claimant's case as uncontroverted.

C. Terminate the proceedings.

D. Treat the claimant's allegations as admitted.

Supplied Set A key: A **Learning answer:** A

Why / option review: A requires continuation without treating the failure alone as admission. B wrongly equates silence with an uncontested win; C resembles the rule for claimant failure under s.25(a); D expressly invents an admission. The tribunal can address forfeiture of the right to file defence, but the claim still needs adjudication.

Revise: Arbitration Act s.25(b).

Q052 New sentencing measure

IPC / BNS | Review: Supported

Same question: Set A Q52 (key B) | Set B Q23 (key A) | Set C Q46 (key D) | Set D Q43 (key D)

Which of the following innovative penal measures has been officially incorporated into the sentencing framework under Section 4 of the Bharatiya Nyaya Sanhita (BNS), 2023 ?

A. Compulsory forfeiture of ancestral property

B. Community Service

C. Solitary confinement

D. Life imprisonment without the possibility of parole

Supplied Set A key: B **Learning answer:** B

Why / option review: B, community service, is the added sentencing category. A invents compulsory ancestral forfeiture; C, solitary confinement, is not the new general category; D is not the listed innovation. Always separate the menu of punishments from the sentence available for a particular offence.

Revise: BNS s.4.

Q053 State List during emergency

Constitutional law | Review: Supported

Same question: Set A Q53 (key C) | Set B Q36 (key D) | Set C Q96 (key B) | Set D Q96 (key B)

Under the scheme of the Constitution of India, once a Proclamation under Article 352 is in operation, Parliament may legislate on matters in the State List by virtue of :

A. Article 356

B. Article 249

C. Article 250

D. Article 360

Supplied Set A key: C **Learning answer:** C

Why / option review: C operates during an Article 352 national emergency. A, Article 356, concerns failure of State constitutional machinery; B, Article 249, requires a Rajya Sabha resolution; D, Article 360, is financial emergency. The event in the question determines which Article applies.

Revise: Constitution Article 250.

Q054 Adult executes promissory note

Contract / Specific relief / Property / NI | Review: Supported

Same question: Set A Q54 (key B) | Set B Q78 (key D) | Set C Q77 (key C) | Set D Q65 (key A)

A, an 18-year-old adult of sound mind, executes a written instrument in favour of B stating, "I promise to pay B ₹ 75,000 on 1st April next year." A is fully competent, has signed the note, and the instrument contains all essential elements of a promissory note. B sues A for recovery after 1st April when A defaults. Examine the correct legal position.

A. The promissory note is valid only if a third party signs as witness.

B. The promissory note is valid; A is liable to pay B.

C. The promissory note is void because it does not mention the consideration.

D. The promissory note is voidable at A's option since A is only 18 years of age.

Supplied Set A key: B **Learning answer:** B

Why / option review: B follows because capacity and all essential requirements are expressly stipulated. A invents compulsory attestation; C wrongly demands a recital of consideration rather than recognising the statutory presumption; D treats an 18-year-old as a minor. The presumption of consideration is rebuttable, not a ban on all defences.

Revise: Negotiable Instruments Act ss.4, 26 and 118; Majority Act.

Q055 Ombudsman recommendation

Administrative law | Review: Supported

Same question: Set A Q55 (key C) | Set B Q79 (key D) | Set C Q20 (key B) | Set D Q74 (key C)

The adoption of an Ombudsman-type institution in India was first recommended by which of the following ?

A. Administrative Reforms Commission, 2005

B. Santhanam Committee, 1964

C. Administrative Reforms Commission, 1966

D. India Against Corruption Movement, 2011

Supplied Set A key: C **Learning answer:** C

Why / option review: C is the conventional answer for the recommendation of Lokpal/Lokayuktas. A names the second ARC, much later; B concerns the Santhanam anti-corruption committee, associated with vigilance reform; D is the 2011 public movement. Do not confuse first recommendation, later activism and eventual enactment.

Revise: First Administrative Reforms Commission, interim report on redress of citizens' grievances (1966).

Q056 Bar disciplinary committee

Professional ethics | Review: Supported

Same question: Set A Q56 (key C) | Set B Q32 (key B) | Set C Q41 (key B) | Set D Q97 (key C)

Which of the following options correctly states the composition of a Disciplinary Committee of a Bar Council as prescribed under Section 9(1) of the Advocates Act, 1961 ?

A. Five members - three elected by the Council and two co-opted senior advocates from outside the Council.

B. Five members - all co-opted from advocates having not less than ten years' standing at the Bar.

C. Three members - two elected from the Council's membership and one co-opted advocate possessing the prescribed qualifications, who is not a member of the Council.

D. Three members - all elected by the Council, with the most junior member serving as Chairman.

Supplied Set A key: C **Learning answer:** C

Why / option review: C gives three members: two elected from the Council and one qualified co-opted non-member advocate. A and B incorrectly give five; D makes all three elected and incorrectly selects the junior member as chair. The senior-most advocate among the committee members chairs it.

Revise: Advocates Act 1961, s.9(1).

Q057 Setting aside abatement

CPC | Review: Supported

Same question: Set A Q57 (key B) | Set B Q93 (key C) | Set C Q48 (key D) | Set D Q6 (key B)

According to the Code of Civil Procedure, 1908, where a suit has abated due to failure to bring legal representatives on record within the prescribed time, the court may set aside such abatement if the plaintiff shows :

A. That the defendant had knowledge of death.

B. Sufficient cause for not making the application within time.

C. That decree has not yet been passed.

D. Error apparent on the face of record.

Supplied Set A key: B **Learning answer:** B

Why / option review: B requires sufficient cause. A, knowledge of death, does not itself excuse delay; C, absence of a decree, is not the test; D belongs to review terminology. Substitution, abatement and setting aside abatement are related but separate procedural steps, each with relevant limitation rules.

Revise: CPC, Order XXII Rule 9.

Q058 HSRP pre-fitment

Torts / Motor vehicles / Consumer | Review: Supported

Same question: Set A Q58 (key A) | Set B Q50 (key B) | Set C Q83 (key B) | Set D Q36 (key D)

What is the year did the mandatory pre-fitment of High Security Registration Plates (HSRP) for all new vehicles come into effect under the Motor Vehicles Act, 1988 ?

A. 2019

B. 2018

C. 2024

D. 2023

Supplied Set A key: A **Learning answer:** A

Why / option review: A is the operational year for the specified new-vehicle pre-fitment framework. B is the order's year, not the effective year asked; C and D are later dates. HSRP policy itself has an earlier history, so do not say HSRPs were first conceived in 2019.

Revise: Motor Vehicles (High Security Registration Plates) Order 2018; effective 1 April 2019.

Q059 Public library and accumulation

Contract / Specific relief / Property / NI | Review: Disputed

Same question: Set A Q59 (key C) | Set B Q49 (key B) | Set C Q82 (key A) | Set D Q26 (key D)

A, aged 80 years, executes a registered deed transferring a parcel of land to a trust with the conditions that, "The property shall be used forever for maintaining a public library and reading room for the residents of Village X. However, if at any time the property ceases to be used for this purpose, it shall revert to my heirs. Further, the income from the property shall accumulate for 50 years before being used for expansion of the library." Which of the following statements is most accurate in law ?

A. The transfer is void because it violates the rule against perpetuity and the condition of accumulation beyond permissible limits.

B. The entire transfer is void because the reversionary clause creates uncertainty and violates public policy.

C. The transfer is valid as it falls within the exception for public benefit, but the accumulation clause is void to the extent it exceeds statutory limits.

D. The transfer is valid in entirety, including the accumulation clause, because transfers for public purposes are fully exempt from all perpetuity-related restrictions.

Supplied Set A key: C **Learning answer:** D stronger than C

Why / option review: Section 18 removes the restrictions of ss.14, 16 and 17 for qualifying public-benefit transfers. Thus C's attempt to invalidate accumulation under s.17 is not sound on the stated public-library purpose. A and B unnecessarily invalidate the transfer; D is the best answer on this issue, though 'all restrictions' must be read within s.18's specified exemption. Other trust and reversion issues still depend on the deed.

Revise: Transfer of Property Act ss.17 and 18.

Q060 Uttarakhand legal-heir escalation

Family law | Review: Supported

Same question: Set A Q60 (key C) | Set B Q27 (key B) | Set C Q5 (key C) | Set D Q99 (key C)

Under the Uniform Civil Code Rules Uttarakhand, 2025, when is an application for declaration of legal heir(s) forwarded to the Registrar General ?

A. After thirty days of receipt if the Registrar does not take action

B. After ten days of receipt if the Registrar does not take action

C. After fifteen days of receipt if the Registrar does not take action

D. None of the above

Supplied Set A key: C **Learning answer:** C

Why / option review: C is the 15-day inaction period for escalation from Registrar to Registrar General in the rule asked. A confuses a different 30-day process; B invents ten days; D is wrong because C matches. Distinguish this escalation from the separate period for the Registrar General's inquiry and from live-in registration timelines.

Revise: UCC Rules Uttarakhand 2025, Rule 5(3)(a)(i).

Q061 Costs for delay

CPC | Review: Supported

Same question: Set A Q61 (key B) | Set B Q26 (key A) | Set C Q58 (key C) | Set D Q93 (key A)

Under Section 35B of the Code of Civil Procedure, 1908, where a party fails to take a step required by the court on the date fixed, the court may :

A. Grant adjournment as a matter of right.

B. Impose costs as a precondition for allowing further prosecution.

C. Dismiss the suit.

D. Proceed with the suit without imposing any condition.

Supplied Set A key: B **Learning answer:** B

Why / option review: B reflects costs as a condition precedent to further prosecution of the suit or defence, as applicable. A wrongly gives an adjournment as of right; C is not the immediate power described; D ignores the costs mechanism. The court's cost order and later consequences of non-payment are separate stages.

Revise: CPC s.35B.

Q062 Arrest and 24 hours

CrPC / BNSS | Review: Supported

Same question: Set A Q62 (key D) | Set B Q84 (key A) | Set C Q13 (key A) | Set D Q45 (key B)

Which provision of the Code of Criminal Procedure (CrPC), 1973, stipulates that a police officer must produce a person arrested without a warrant before a Magistrate within a maximum period of 24 hours ?

A. Section 41

B. Section 164

C. Section 51

D. Section 57

Supplied Set A key: D **Learning answer:** D

Why / option review: D sets the detention limit without magistrate's authority, excluding necessary journey time. A, s.41, concerns arrest powers; B, s.164, recorded statements/confessions; C, s.51, search of arrested persons. Section 56 supplies the prompt-production duty alongside s.57. Twenty-four hours is not permission for unnecessary delay.

Revise: CrPC ss.56-57; Article 22(2).

Q063 Trading with enemy

Contract / Specific relief / Property / NI | Review: Qualified

Same question: Set A Q63 (key A) | Set B Q25 (key B) | Set C Q32 (key A) | Set D Q52 (key D)

During an India - Country X war, India declares X an enemy. A (an Indian citizen) enters into a contract to supply medicines to B (a citizen of X) via a neutral intermediary and a bank. Which of the following is most accurate under the Indian Contract Act, 1872 ?

A. Void - trading with an enemy in war is prohibited and is against public policy.

B. Valid - goods are humanitarian and payment is via a neutral country.

C. Voidable - only the Government of India can cancel.

D. Valid unless the Government expressly cancels.

Supplied Set A key: A **Learning answer:** A intended; assumed enemy character

Why / option review: A is the conventional wartime answer where prohibited enemy trading and no governmental permission are assumed. B is not saved merely by medicines or neutral routing; C incorrectly makes it merely voidable; D reverses the prohibition. Citizenship alone is not always conclusive of enemy character; residence, business connection and authorisation can matter.

Revise: Indian Contract Act s.23; public-policy restrictions on enemy trading.

Q064 Presidential reference

Constitutional law | Review: Qualified

Same question: Set A Q64 (key B) | Set B Q95 (key D) | Set C Q59 (key A) | Set D Q39 (key C)

Under Article 143 of the Constitution of India, the President may seek the opinion of the Supreme Court on questions of law or fact of public importance. The opinion rendered by the Court in such a reference is generally regarded as :

A. Enforceable through contempt jurisdiction

B. Advisory in nature and not strictly binding

C. A binding precedent under Article 141

D. Equivalent to a decree of the Court

Supplied Set A key: B **Learning answer:** B

Why / option review: B best describes the opinion's advisory character and the President's position. A wrongly treats advice like an enforceable direction; D treats it as a decree. C is too categorical for this question, although legal propositions in advisory opinions can carry authoritative precedential weight. Do not infer that lower courts may casually disregard such reasoning.

Revise: Constitution Article 143; distinction between advisory opinion and Article 141 law.

Q065 Mortgage by conditional sale

Contract / Specific relief / Property / NI | Review: Qualified

Same question: Set A Q65 (key A) | Set B Q12 (key A) | Set C Q34 (key A) | Set D Q86 (key A)

A executes a document in favour of B stating, "I hereby sell my house to B for ₹ 5,00,000. If I repay the amount within 3 years, B shall retransfer the property to me; otherwise, the sale shall become absolute." The condition is included in the same document. A fails to repay within 3 years. B claims absolute ownership. Examine the correct legal position under the Transfer of Property Act, 1882.

A. It is a mortgage by conditional sale; B must seek foreclosure through court.

B. The transaction is void for uncertainty.

C. It is a lease with an option to repurchase.

D. It is an outright sale; B becomes absolute owner automatically.

Supplied Set A key: A **Learning answer:** A intended; intention matters

Why / option review: A fits a security transaction with the repayment condition in the same document; default does not itself extinguish redemption. B invents uncertainty; C wrongly calls it a lease; D assumes automatic absolute ownership. The same-document condition is necessary but not alone conclusive: substance and intention distinguish a mortgage from a sale with a repurchase agreement.

Revise: Transfer of Property Act ss.58(c), 60 and 67.

Q066 Fast-track merger

Company law | Review: Qualified

Same question: Set A Q66 (key A) | Set B Q2 (key A) | Set C Q7 (key B) | Set D Q53 (key D)

Section 233 of the Companies Act, 2013, deals with "fast track merger". What is the time duration and the concerned authority for approval ?

A. 60-90 Days, Regional Director

B. 45-90 Days, NCLAT

C. 60-90 Days, NCLT

D. 1 Year, Regional Director

Supplied Set A key: A **Learning answer:** A closest; timeline approximate

Why / option review: A identifies the Regional Director exercising delegated Central Government powers. B incorrectly names NCLAT; C wrongly makes NCLT the routine fast-track approver; D asserts a one-year standard. '60-90 days' is not a universal statutory completion guarantee; stages, objections, filings and applicable rule amendments affect timing. A referred matter can reach NCLT.

Revise: Companies Act s.233; Companies (Compromises, Arrangements and Amalgamations) Rules, Rule 25.

Q067 Court intervention in arbitration

ADR / Arbitration | Review: Supported

Same question: Set A Q67 (key D) | Set B Q44 (key C) | Set C Q55 (key B) | Set D Q56 (key D)

Judicial intervention in arbitration proceedings is limited under Section 5 of the Arbitration and Conciliation Act, 1996. In which of the following situations may a court intervene ?

A. When procedural irregularity is alleged without specific provision under the Act.

B. When both parties request supervision of proceedings.

C. When the court considers the award unjust on facts.

D. When the Act expressly permits such intervention.

Supplied Set A key: D **Learning answer:** D

Why / option review: D preserves intervention where Part I provides it. A cannot create a new court power by alleging irregularity; B cannot create jurisdiction by consent; C is not a general merits-appeal ground. Learn the specific routes such as appointment, interim measures and setting aside instead of assuming unrestricted supervision.

Revise: Arbitration Act s.5.

Q068 Singer's negative covenant

Contract / Specific relief / Property / NI | Review: Supported

Same question: Set A Q68 (key A) | Set B Q22 (key B) | Set C Q18 (key A) | Set D Q46 (key C)

Ajeet Singh, a famous singer, enters into a contract with Yash Aditya Music Company agreeing to perform exclusively for them for 2 years and not to perform for any other company during that period. After one year, Ajeet Singh refuses to perform for Yash Aditya Music Company and begins performing for BR Chopra & Company. Yash Aditya Music Company files a suit seeking an injunction restraining Ajeet Singh from performing for BR Chopra & Company. Which of the following statements is correct under the Specific Relief Act, 1963 ?

A. The injunction may be granted to enforce the negative covenant.

B. The injunction must be refused because contracts of personal service cannot be enforced.

C. The court must compel Ajeet Singh to sing for Yash Aditya Music Company.

D. Only damages can be granted.

Supplied Set A key: A **Learning answer:** A

Why / option review: A permits a suitable injunction against performing for others during the contract, subject to statutory and equitable conditions. B wrongly treats unenforceability of personal performance as barring every negative injunction; C would compel personal service; D wrongly makes damages exclusive. Compare Q43: during-contract exclusivity is different from a post-employment restraint.

Revise: Specific Relief Act ss.14 and 42.

Q069 Default bail

CrPC / BNSS | Review: Qualified

Same question: Set A Q69 (key C) | Set B Q17 (key D) | Set C Q45 (key D) | Set D Q88 (key B)

Under Section 167 of the Code of Criminal Procedure (CrPC), 1973, 'Default Bail' (or statutory bail) is a right of the accused if the investigation is not completed :

A. After a fixed period of 30 days for all types of offences.

B. Upon the expiry of 120 days specifically for offences against the State.

C. After 60 days or 90 days, contingent upon the maximum punishment prescribed for the offence.

D. Immediately following the completion of the initial 15-day police custody.

Supplied Set A key: C **Learning answer:** C

Why / option review: C is the ordinary 60/90-day framework, subject to the offence category and special laws. A and B invent universal alternatives; D confuses police custody with total authorised detention. Expiry alone is not automatic release: the accused must invoke the right and be prepared to furnish bail. Under BNSS, read the exact ten-years-or-more wording rather than copying every CrPC interpretation.

Revise: BNSS s.187(3).

Q070 Air Act constitutional basis

Environmental law | Review: Supported

Same question: Set A Q70 (key C) | Set B Q19 (key C) | Set C Q35 (key A) | Set D Q47 (key A)

Which of the following Articles of the Constitution of India forms the primary legislative basis for the Parliament enacting the Air (Prevention and Control of Pollution) Act, 1981 ?

A. Article 252

B. Article 233

C. Article 253

D. None of the above

Supplied Set A key: C **Learning answer:** C

Why / option review: C links enactment to implementation of international environmental decisions. A, Article 252, is associated with the State-resolution route used for the Water Act 1974; B, Article 233, concerns district judges; D ignores Article 253. This is a useful Air Act versus Water Act contrast.

Revise: Article 253; Air (Prevention and Control of Pollution) Act 1981 preamble.

Q071 Guardian for married female minor

Family law | Review: Qualified

Same question: Set A Q71 (key B) | Set B Q6 (key D) | Set C Q29 (key B) | Set D Q90 (key B)

Under the Guardians and Wards Act, 1890, what condition applies for appointing a guardian for a married female minor ?

A. The husband must be declared legally incompetent

B. The husband must be considered unfit by the Court

C. The parents must apply jointly for such appointment

D. The husband must consent to such appointment

Supplied Set A key: B **Learning answer:** B

Why / option review: B matches the court's finding of the husband's unfitness, in the statutory context. A is narrower than unfitness; C imposes no such universal joint-parent application condition; D wrongly gives the husband a veto. This guardianship provision is not a statement that child marriage is lawful or advisable; validity is governed by separate laws.

Revise: Guardians and Wards Act 1890, s.19(a).

Q072 Dowry transferred to woman

Family law | Review: Qualified

Same question: Set A Q72 (key C) | Set B Q29 (key A) | Set C Q44 (key B) | Set D Q89 (key B)

Under the Dowry Prohibition Act, 1961, within how many months from the date of marriage must dowry received before marriage be transferred to the woman ?

A. Within six months

B. Within seven months

C. Within three months

D. Within five months

Supplied Set A key: C **Learning answer:** C

Why / option review: C gives three months after marriage for dowry received before marriage. A, B and D give incorrect periods. There is a separate rule where the woman was a minor, linked to attaining 18. Transfer to her does not legalise giving or taking prohibited dowry.

Revise: Dowry Prohibition Act 1961, s.6(1).

Q073 Medical insurance deduction

Taxation | Review: Qualified

Same question: Set A Q73 (key B) | Set B Q82 (key A) | Set C Q71 (key D) | Set D Q92 (key A)

An assessee pays a medical insurance premium for himself and his family and claims a deduction while computing total income. What is the correct position under the Income Tax Act, 1961 ?

A. Deduction is not permitted in such cases

B. Deduction is allowed subject to prescribed limits and conditions

C. Deduction is allowed without any monetary limit

D. Deduction is allowed only for senior citizens

Supplied Set A key: B **Learning answer:** B

Why / option review: B preserves limits, qualifying payments and applicable tax regime. A wrongly denies all eligibility; C removes ceilings; D wrongly limits it to senior citizens. Do not assume s.80D is available under the default/new regime. This is an answer to the named 1961 Act question, not a current-year tax calculation.

Revise: Income-tax Act 1961, s.80D; regime restrictions including s.115BAC.

Q074 Private defence causing death

IPC / BNS | Review: Supported

Same question: Set A Q74 (key C) | Set B Q34 (key A) | Set C Q97 (key A) | Set D Q72 (key A)

Under the Indian Penal Code (IPC), 1860, in which of the following scenarios does the "Right of Private Defence of the Body" extend to the extent of voluntarily causing death to the assailant ?

A. A simple assault committed without the use of a weapon

B. A case of theft where the value of the stolen property exceeds ₹ 10,000

C. An assault committed with the specific intention of kidnapping or abducting a person

D. An act of criminal trespass occurring on open, vacant land

Supplied Set A key: C **Learning answer:** C

Why / option review: C, an assault with intent to kidnap or abduct, is a listed category, subject to the right's limits. A is not automatically grave enough; B has no Rs.10,000 rule; D does not by itself authorise lethal defence. Necessity and proportional statutory limits remain relevant; this is not a licence to retaliate later.

Revise: IPC ss.99 and 100, especially clause Fifth.

Q075 Informant told investigation refused

CrPC / BNSS | Review: Disputed

Same question: Set A Q75 (key B) | Set B Q100 (key C) | Set C Q9 (key C) | Set D Q24 (key A)

Under Section 173 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, if a police officer-in-charge determines that an investigation is not warranted because the case lacks sufficient gravity, they are legally obligated to notify the informant of this decision within :

A. 24 hours

B. 14 days

C. 7 days

D. 30 days

Supplied Set A key: B **Learning answer:** No exact option; B in key

Why / option review: Section 173(3)'s 14 days concerns a permitted preliminary inquiry, not a general deadline to notify refusal. Section 176(2) uses forthwith for notifying the informant when the relevant refusal ground applies; it also contains a distinct fortnightly report requirement. A, C and D invent fixed periods; B conflates different duties. Learn trigger, recipient and action alongside every number.

Revise: BNSS ss.173(3) and 176(2).

Q076 Surety and extension of time

Contract / Specific relief / Property / NI | Review: Disputed

Same question: Set A Q76 (key A) | Set B Q13 (key D) | Set C Q30 (key B) | Set D Q75 (key C)

X takes a loan of ₹ 10,00,000 from Bank A. Y signs a contract as surety, promising to pay the bank if X defaults. After 3 months, Bank A agrees to reduce the interest rate and extends the repayment period by 6 months without informing Y. Subsequently, X defaults on the loan. Which of the following statements correctly describes Y's liability under the Indian Contract Act, 1872 ?

A. Y is partially discharged from liability because Bank A's modification increased the risk to Y without his consent.

B. Y is fully liable for the entire loan because a surety is always liable once the principal debtor defaults.

C. Y is not liable at all because the principal debtor defaulted after the contract modification.

D. Y is liable only if the bank sues the principal debtor first, regardless of the modification.

Supplied Set A key: A **Learning answer:** C closest; A in key

Why / option review: A's partial-discharge/risk explanation is unreliable for this single loan. An agreed extension to the principal debtor without the surety's assent normally attracts s.135 discharge, making C's result stronger, though C's explanation is loose. B ignores discharge protections; D wrongly requires suing the borrower first. Mere forbearance differs from a binding extension, and advance consent in the guarantee may change the result.

Revise: Indian Contract Act ss.133 and 135.

Q077 Kinds of presumption

Evidence / BSA | Review: Disputed

Same question: Set A Q77 (key C) | Set B Q92 (key D) | Set C Q39 (key A) | Set D Q62 (key B)

Which of the following does not fall under the framework of presumption under Section 2 of the Bharatiya Sakshya Adhiniyam, 2023 ?

A. Conclusive proof

B. Shall presume

C. Unassailable proof

D. May be

Supplied Set A key: C **Learning answer:** C intended; D is also defective

Why / option review: C is not a defined category. But D literally says 'May be', not 'may presume', so it is not the statutory term either. A and B are recognised categories. Read D as a likely printing error only when explaining the intended key; on the printed text this is not a clean single-answer question.

Revise: BSA s.2(1): conclusive proof, shall presume, may presume.

Q078 Privacy

Constitutional law | Review: Supported

Same question: Set A Q78 (key C) | Set B Q97 (key B) | Set C Q17 (key A) | Set D Q67 (key D)

Directions : The following question consists of two statements, one labelled as Assertion (A) and the other labelled as Reason (R). You are to examine these two statements carefully and decide if the Assertion (A) and the Reason (R) are individually true and if so, whether the Reason (R) is a correct explanation of the Assertion (A). Assertion (A) : The right to privacy has been judicially recognised as an integral part of Article 21 of the Constitution of India. Reason (R) : Privacy is expressly enumerated as a separate Fundamental Right in Part III of the Constitution of India. In the context of the Constitution of India and the decision in Justice K.S. Puttaswamy (Retd.) v. Union of India (2017) 10 SCC 1, which one of the following is correct ?

A. (A) is false, but (R) is true.

B. Both (A) and (R) are true, and (R) is the correct explanation of (A).

C. (A) is true, but (R) is false.

D. Both (A) and (R) are true, but (R) is not the correct explanation of (A).

Supplied Set A key: C **Learning answer:** C

Why / option review: The assertion is true and the reason false: privacy is constitutionally protected through interpretation, not expressly listed as a separate named Part III right. A rejects the true assertion; B and D incorrectly accept the reason. Judicial recognition and literal enumeration are different.

Revise: Article 21; K.S. Puttaswamy v. Union of India (2017).

Q079 Residuary legislative power

Constitutional law | Review: Supported

Same question: Set A Q79 (key B) | Set B Q88 (key C) | Set C Q19 (key C) | Set D Q17 (key B)

Under the scheme of distribution of legislative powers in the Constitution of India, a subject which is not enumerated in either the State List or the Concurrent List falls within the residuary field of legislation. Such residuary power is vested in :

A. The State Legislatures

B. The Parliament

C. The President of India

D. The Supreme Court of India

Supplied Set A key: B **Learning answer:** B

Why / option review: B, Parliament, holds residuary legislative power. A wrongly gives it to States; C confuses the President's constitutional role with legislative competence; D confuses adjudication with legislation. The question concerns matters outside State and Concurrent Lists, read within the full distribution scheme.

Revise: Article 248; Union List Entry 97.

Q080 Natural justice beyond narrow categories

Administrative law | Review: Qualified

Same question: Set A Q80 (key A) | Set B Q63 (key A) | Set C Q73 (key B) | Set D Q38 (key B)

"The rules of natural justice were not confined to the narrow precincts of the prevailing definition of quasi-judicial functions." This principle was laid down in which case ?

A. Ridge v. Baldwin (1964) A.C. 40

B. Conway v. Rimmer (1968) A.C. 910

C. Maradana Mosque Trustees v. Mahmud (1967) (1) A.C. 13

D. A.K. Kraipak v. Union of India AIR 1970 SC 150

Supplied Set A key: A **Learning answer:** A in key; attribution qualified

Why / option review: A is the intended foundational English case against an overly narrow approach to natural justice. B concerns public-interest immunity; C is a different administrative-law decision. D is highly relevant to the Indian extension of natural justice to administrative action, so the proposition overlaps. The precise quoted sentence was not independently located in the original report here.

Revise: Ridge v. Baldwin [1964] AC 40; A.K. Kraipak v. Union of India.

Q081 Definition of administrative law

Administrative law | Review: Supported

Same question: Set A Q81 (key B) | Set B Q72 (key A) | Set C Q79 (key D) | Set D Q42 (key C)

"Administrative law is the law concerning the powers and procedures of administrative agencies, including especially the law governing judicial review of administrative action." This definition was given by :

A. Ivor Jennings

B. K.C. Davis

C. A.V. Dicey

D. H.W.R. Wade

Supplied Set A key: B **Learning answer:** B

Why / option review: B is the conventional attribution of the powers/procedures/judicial-review definition. A, Jennings, is associated with the law relating to administration; C, Dicey, with rule of law and discussion of droit administratif; D, Wade, with judicial control and administrative powers. Learn the distinctive wording, not only the author list.

Revise: K.C. Davis, Administrative Law Treatise; standard doctrinal attribution.

Q082 Circumstantial evidence principles

Evidence / BSA | Review: Supported

Same question: Set A Q82 (key A) | Set B Q21 (key C) | Set C Q22 (key A) | Set D Q61 (key A)

The five Golden Principles with respect to Circumstantial Evidence were laid down in which Supreme Court Judgment ?

A. Sharad Birdhichand Sarda v. State of Maharashtra, 1984 AIR 1622

B. Dudh Nath Pandey v. State of U.P., 1981 SCC (2) 166

C. Vasa Chandrasekhar Rao v. Ponna Satyanarayana & Anr., 2000 AIR SC 2138

D. Dr. Sunil Clifford Daniel v. State of Punjab (2012) 11 SCC 205

Supplied Set A key: A **Learning answer:** A

Why / option review: A is the source of the five-point formulation. B concerns, among other matters, an alibi; C and D discuss circumstantial evidence but are not the originating landmark asked. Learn the chain: established facts, guilt-only consistency, conclusive character, exclusion of innocent hypotheses, and a complete chain leaving no reasonable innocent conclusion.

Revise: Sharad Birdhichand Sarda v. State of Maharashtra (1984).

Q083 Place of arbitration

ADR / Arbitration | Review: Supported

Same question: Set A Q83 (key B) | Set B Q54 (key A) | Set C Q100 (key C) | Set D Q35 (key C)

According to Section 20 of the Arbitration and Conciliation Act, 1996, where the parties have not agreed on the place of arbitration, the arbitral tribunal shall determine it having regard to :

A. Place where the contract was executed.

B. Circumstances of the case, including the convenience of the parties.

C. Jurisdiction of the civil court alone.

D. Location of subject matter of dispute.

Supplied Set A key: B **Learning answer:** B

Why / option review: B states the test when parties have not agreed. A, C and D may supply contextual facts but none is the exclusive statutory determinant. Party autonomy comes first. Also distinguish the juridical seat from a convenient venue for hearings; those labels are not always interchangeable.

Revise: Arbitration Act s.20(2).

Q084 Dowry minimum imprisonment

Family law | Review: Qualified

Same question: Set A Q84 (key B) | Set B Q10 (key D) | Set C Q72 (key D) | Set D Q14 (key D)

Under the Dowry Prohibition Act, 1961, what is the minimum term of imprisonment prescribed for giving or taking dowry ?

A. Not less than ten years

B. Not less than five years

C. Not less than three years

D. Not less than seven years

Supplied Set A key: B **Learning answer:** B

Why / option review: B gives the ordinary minimum of five years. A, C and D do not state that minimum. The court may impose less for adequate and special reasons recorded in the judgment; the statute also prescribes a fine. Keep this distinct from dowry death under penal law.

Revise: Dowry Prohibition Act 1961, s.3.

Q085 Ex parte decree: sufficient cause

CPC | Review: Supported

Same question: Set A Q85 (key D) | Set B Q74 (key C) | Set C Q12 (key D) | Set D Q44 (key A)

Directions : The following question consists of two statements, one labelled as Assertion (A) and the other labelled as Reason (R). You are to examine these two statements carefully and decide if the Assertion (A) and the Reason (R) are individually true and if so, whether the Reason (R) is a correct explanation of the Assertion (A). Assertion (A) : An ex parte decree may be set aside if the defendant satisfies the court that he was prevented by sufficient cause from appearing when the suit was called for hearing. Reason (R) : Under Order IX Rule 13 of the Code of Civil Procedure, 1908, the court must be satisfied that the summons was not duly served or that the defendant was prevented by sufficient cause from appearing when the suit was called for hearing. Mark your answer as :

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A).

B. (A) is true, but (R) is false.

C. (A) is false, but (R) is true.

D. Both (A) and (R) are true and (R) is the correct explanation of (A).

Supplied Set A key: D **Learning answer:** D

Why / option review: Both assertion and reason are true, and the reason states the legal basis of the assertion. A wrongly denies that connection; B rejects the rule; C rejects the remedy. Remember the two main grounds: summons not duly served, or sufficient cause preventing appearance, with the rule's provisos.

Revise: CPC, Order IX Rule 13.

Q086 Terrorist act in BNS

IPC / BNS | Review: Supported

Same question: Set A Q86 (key C) | Set B Q28 (key B) | Set C Q64 (key C) | Set D Q66 (key A)

Under which specific provision of the Bharatiya Nyaya Sanhita (BNS), 2023, has the definition of a 'Terrorist Act' been formally integrated into India's general penal legislation for the first time ?

A. Section 152

B. Section 109

C. Section 113

D. Section 121

Supplied Set A key: C **Learning answer:** C

Why / option review: C is the provision asked. A, s.152, concerns sovereignty/unity/integrity-related acts; B, s.109, attempt to murder; D, s.121, hurt to deter a public servant. Terrorism was already addressed by special legislation such as UAPA; the question is about its placement in the new general penal code.

Revise: BNS s.113.

Q087 Plea-bargaining application

CrPC / BNSS | Review: Supported

Same question: Set A Q87 (key D) | Set B Q42 (key C) | Set C Q23 (key D) | Set D Q60 (key C)

According to the provisions of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, an accused person intending to apply for 'Plea Bargaining' must do so within how many days following the formal framing of charges ?

A. 7 days

B. 15 days

C. 60 days

D. 30 days

Supplied Set A key: D **Learning answer:** D

Why / option review: D is 30 days after framing the charge. A and B give incorrect periods; C's 60 days relates to working out a mutually satisfactory disposition at a later stage, not filing the initial application. Eligibility exclusions must be considered before applying the deadline.

Revise: BNSS s.290(1).

Q088 Previous year and assessment year

Taxation | Review: Qualified

Same question: Set A Q88 (key C) | Set B Q30 (key C) | Set C Q69 (key D) | Set D Q63 (key C)

Directions : The following question consists of two statements, one labelled as Assertion (A) and the other labelled as Reason (R). You are to examine these two statements carefully and decide if the Assertion (A) and the Reason (R) are individually true and if so, whether the Reason (R) is a correct explanation of the Assertion (A). Assertion (A) : Income-tax is levied on the total income of a person for the previous year. Reason (R) : Income earned during the previous year is assessed to tax in the immediately succeeding assessment year under the Income-tax Act, 1961. Mark answer as :

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A).

B. (A) is false, but (R) is true.

C. Both (A) and (R) are true and (R) is the correct explanation of (A).

D. (A) is true, but (R) is false.

Supplied Set A key: C **Learning answer:** C

Why / option review: C is the ordinary textbook relationship: the previous year's income is assessed in the succeeding assessment year, explaining the assertion. A denies that connection; B and D reject a generally true statement. Special assessment exceptions exist. Keep this within the 1961 Act's terminology rather than treating it as a complete statement of every later tax-law framework.

Revise: Income-tax Act 1961, ss.3-4 and charging scheme.

Q089 Electronic-evidence certificate

Evidence / BSA | Review: Supported

Same question: Set A Q89 (key C) | Set B Q47 (key A) | Set C Q50 (key B) | Set D Q49 (key C)

Which of the following is not stated in Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023, with regard to a certificate to verify the authenticity of electronic evidence ?

A. Signed by both the person in charge of the computer or communication device and an expert, with the certificate adhering to the format prescribed in the Adhiniyam's Schedule.

B. The form specified in the Schedule requires that electronic evidence be accompanied by a 'hash value'.

C. Qualification of an expert.

D. None of the above

Supplied Set A key: C **Learning answer:** C

Why / option review: C is the intended omission: the provision does not set out detailed expert qualifications. A refers to certification/signature roles; B refers to the scheduled hash requirement; D wrongly says no listed omission. The Schedule is incorporated by the section, so do not separate it artificially from the certification scheme.

Revise: BSA s.63(4) and Schedule.

Q090 PUC provisions

Torts / Motor vehicles / Consumer | Review: Qualified

Same question: Set A Q90 (key B) | Set B Q94 (key D) | Set C Q54 (key B) | Set D Q55 (key A)

A mandatory PUC Certificate is provided under which Section and Rule ?

A. Section 120(3) of the Motor Vehicles Act, 1988 and Rules 122 and 123 of the Centre Motor Vehicles Rules, 1989

B. Section 190(2) of the Motor Vehicles Act, 1988 and Rules 115 and 116 of the Centre Motor Vehicles Rules, 1989

C. Section 160(1) of the Motor Vehicles Act, 1988 and Rules 109 and 110 of the Centre Motor Vehicles Rules, 1989

D. Section 177(3) of the Motor Vehicles Act, 1988 and Rules 117 and 118 of the Centre Motor Vehicles Rules, 1989

Supplied Set A key: B **Learning answer:** B

Why / option review: B is the relevant combination. The certificate requirement is particularly in Rule 115(7); s.190(2) is the penal environmental-standard provision. A, C and D combine the wrong sections/rules. Distinguish the rule creating a compliance requirement from the section penalising a violation.

Revise: Motor Vehicles Act s.190(2); Central Motor Vehicles Rules 115 and 116.

Q091 Government use of patented invention

Intellectual property | Review: Qualified

Same question: Set A Q91 (key B) | Set B Q55 (key C) | Set C Q31 (key B) | Set D Q84 (key C)

Under the Patents Act, 1970, a patent is granted to an inventor in India. Which of the following correctly reflects a limitation on the patentee's rights under the law ?

A. The patentee loses all rights once the invention is used by the Government

B. The Government may use the invention for its own purposes without the consent of the patentee

C. The invention cannot be used by the Government without permission

D. The patent becomes void if used by a government authority

Supplied Set A key: B **Learning answer:** B

Why / option review: B is possible under the statutory government-use framework without ordinary patentee consent. A and D wrongly destroy the patent; C wrongly makes consent invariably necessary. Authorisation, purpose, notice and remuneration conditions depend on the provision invoked. Government use is not a general public permission to copy the invention.

Revise: Patents Act ss.47 and 100.

Q092 Onus probandi

Evidence / BSA | Review: Supported

Same question: Set A Q92 (key A) | Set B Q96 (key C) | Set C Q27 (key C) | Set D Q5 (key A)

What do you mean by 'onus probandi' ?

A. 'Burden of proof' which places the responsibility on the party making an affirmative claim to substantiate it with evidence.

B. "The fact to be proved" or the "ultimate fact" that needs to be established in a legal case, such as the core elements of a crime or a cause of action.

C. The prosecution in a criminal case must prove beyond a reasonable doubt, not only a criminal act, but also a certain level of a guilty mind (mens rea), specified in the criminal statute.

D. Actual evidence, documents, or witnesses presented to substantiate that claim.

Supplied Set A key: A **Learning answer:** A

Why / option review: A is the meaning: responsibility to establish an asserted fact. B is the fact to be proved, often called factum probandum; C describes criminal proof/mental-element requirements, subject to offence-specific rules; D describes evidentiary material or facta probantia. Burden, standard of proof and evidence are separate concepts.

Revise: Evidence law: burden of proof; BSA ss.104-106.

Q093 Minority shareholder remedies

Company law | Review: Qualified

Same question: Set A Q93 (key B) | Set B Q73 (key D) | Set C Q40 (key B) | Set D Q73 (key D)

In the following question, a Statement is followed by two Conclusions, I and II. Statement : Allegations have been made by the Minority Shareholders that ABC's promoters sold the optionally convertible preference shares and redeemable preference shares to a trust controlled by ABC's promoters at prices significantly below their fair market value, thereby causing a financial loss to ABC and its shareholders. What is the recourse for minority shareholders under law ? Conclusion I : The Minority Shareholders can file for class action under Section 245 of the Companies Act, 2013, seeking directions from NCLT to either reverse the sale of optionally convertible preference shares and redeemable preference shares or to compensate the Minority Shareholders. Conclusion II : The aggrieved members may proceed individually to protect their rights against acts of oppression or mismanagement under Section 241 of the Companies Act, 2013. In the context of the above Statement and Conclusions, which one of the following is correct ?

A. Neither Conclusion I nor II follows

B. Both Conclusions I and II follow

C. Only Conclusion II follows

D. Only Conclusion I follows

Supplied Set A key: B **Learning answer:** B intended; standing conditions omitted

Why / option review: Both routes may be relevant, so B captures the intended answer. But s.241 petitions are subject to s.244 thresholds or waiver; s.245 also has membership/depositor thresholds and limits. A rejects available remedies; C and D each omit a possible route. 'Individually' does not mean every single shareholder has an unconditional right to bring every proceeding or recover personal compensation for company loss.

Revise: Companies Act ss.241, 244 and 245.

Q094 Money gifts from non-relative

Taxation | Review: Qualified

Same question: Set A Q94 (key D) | Set B Q65 (key C) | Set C Q66 (key C) | Set D Q70 (key A)

According to Section 56(2)(x), of the Income-tax Act, 1961, if an individual receives a sum of money, without consideration, from a person other than a relative, and the amount exceeds the prescribed limit. What is the correct legal position ?

A. It is fully exempt from tax.

B. It is taxable only if received in cash.

C. It is treated as a capital receipt and is not taxable.

D. It is taxable under the head 'Income from Other Sources'.

Supplied Set A key: D **Learning answer:** D

Why / option review: D is the usual head when the aggregate monetary-gift threshold is crossed and no exemption applies. A wrongly makes all gifts exempt; B wrongly limits taxation to cash; C ignores statutory taxation of such receipts. Under the stated provision the threshold is Rs.50,000 in aggregate, and the whole qualifying amount is taxable, not merely the excess. Marriage, inheritance and other statutory exceptions matter.

Revise: Income-tax Act 1961, s.56(2)(x).

Q095 Posthumous copyright

Intellectual property | Review: Qualified

Same question: Set A Q95 (key C) | Set B Q5 (key C) | Set C Q99 (key C) | Set D Q13 (key A)

Read the following statements and choose the correct option. Under the Copyright Act, 1957 : Statement I : In the case of a posthumous literary work, copyright subsists for sixty years from the beginning of the calendar year next following the year in which the work is first published. Statement II : For such works, publication refers to making the work available to the public by issue of copies or by communication to the public.

A. Both Statements I and II are false

B. Only Statement II is true

C. Both Statements I and II are true

D. Only Statement I is true

Supplied Set A key: C **Learning answer:** C

Why / option review: Both statements are correct within the s.24 posthumous-work conditions. A denies both; B omits the term rule; D omits publication's definition. The 60 years runs from the next calendar year, with s.24's special earlier publication of an adaptation relevant where applicable. Do not apply this term to every work first discovered after an author's death without checking the section.

Revise: Copyright Act 1957, ss.3 and 24.

Q096 Section 65B case law

Evidence / BSA | Review: Qualified

Same question: Set A Q96 (key D) | Set B Q45 (key B) | Set C Q36 (key C) | Set D Q10 (key D)

Which of the following statements is not true with respect to Section 65B of the Indian Evidence Act, 1872 ?

A. The requirement of a certificate under Section 65B(4) of the Indian Evidence Act, 1872 ("Evidence Act"), is a condition precedent to the admissibility of an electronic record in evidence.

B. Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal, (2020) 7 SCC 1 - landmark judgment stands as the latest interpretation of the relevant provisions, offering a consistent approach in line with the legislative intent.

C. In P.V. Anvar v. P.K. Basheer, the court held that Section 65B is a "complete code" for electronic evidence.

D. In State (NCT of Delhi) v. Navjot Sandhu, reported in AIR 2005 SC 3820, the Hon'ble Supreme Court had held that courts could admit electronic records such as printouts and compact discs (CDs) as prima facie evidence without authentication.

Supplied Set A key: D **Learning answer:** D intended; A needs limits

Why / option review: D misdescribes the old approach as dispensing with authentication altogether: it allowed proof through general secondary-evidence provisions, later displaced by Anvar. B and C identify the governing doctrinal line. A is broadly correct for computer outputs but overbroad if applied to an original device/primary electronic evidence. Do not learn 'certificate always necessary for every electronic item' as an exception-free rule.

Revise: Anvar P.V. v. P.K. Basheer (2014); Arjun Panditrao Khotkar (2020); Navjot Sandhu (2005).

Q097 Acts consolidated by IR Code

Labour / Industrial law | Review: Supported

Same question: Set A Q97 (key B) | Set B Q68 (key B) | Set C Q78 (key A) | Set D Q81 (key A)

Which of the following is not included in "The Industrial Relations Code, 2020" ?

A. Trade Unions Act, 1926

B. Industries (Development and Regulation) Act, 1951 (IDR Act)

C. Industrial Disputes Act, 1947

D. Industrial Employment (Standing Orders) Act, 1946

Supplied Set A key: B **Learning answer:** B

Why / option review: B, the Industries (Development and Regulation) Act 1951, is outside the three-Act consolidation. A, Trade Unions Act; C, Industrial Disputes Act; and D, Industrial Employment (Standing Orders) Act are the included three. The question is about consolidation, not the separate question of commencement on a particular historical date.

Revise: Industrial Relations Code 2020, repeal/consolidation framework.

Q098 What counts as a document

Evidence / BSA | Review: Disputed

Same question: Set A Q98 (key D) | Set B Q85 (key A) | Set C Q62 (key B) | Set D Q57 (key A)

Which of the following is not a document as per the Bharatiya Sakshya Adhiniyam, 2023 ?

A. Caricature

B. Map

C. Inscription

D. Private papers

Supplied Set A key: D **Learning answer:** No correct option; D in key

Why / option review: A caricature, B map and C inscription are document illustrations. D private papers can also be documents; privacy is not an exclusion. The question appears to confuse a statutory illustration list with the inclusive definition, or private with non-document. Learn this correction firmly: a personal diary can be documentary evidence, subject to relevance and proof.

Revise: BSA ss.2(1)(d) and 74(2).

Q099 Failure to pay service charges

CPC | Review: Qualified

Same question: Set A Q99 (key D) | Set B Q35 (key C) | Set C Q37 (key B) | Set D Q16 (key B)

As per the Code of Civil Procedure, 1908, where the plaintiff in a civil suit fails to pay the requisite court fee or postal charges for service of summons within the time permitted by the court, the court may :

A. Stay the proceedings until service is effected.

B. Proceed to decide the suit on merits.

C. Return the plaint for fresh presentation.

D. Dismiss the suit.

Supplied Set A key: D **Learning answer:** D

Why / option review: D allows dismissal where summons is not served because the plaintiff failed to pay the requisite service fee/postal charges or provide required copies. A is not the specific sanction; B cannot justify deciding merits without proper service; C is not the route. The proviso matters if the defendant nevertheless attends. This is not the same as insufficient valuation court fee under Order VII Rule 11.

Revise: CPC, Order IX Rule 2.

Q100 Wife's consent to adoption

Family law | Review: Supported

Same question: Set A Q100 (key A) | Set B Q64 (key B) | Set C Q93 (key A) | Set D Q95 (key B)

Under the Hindu Adoptions and Maintenance Act, 1956, which situation makes the consent of a wife unnecessary for adoption ?

A. She has ceased to be a Hindu by conversion.

B. She refuses consent due to personal disagreement.

C. She is living separately without legal separation.

D. None of the above

Supplied Set A key: A **Learning answer:** A

Why / option review: A is an express exception when she has ceased to be Hindu. B, mere disagreement, is not an exception; C, separate residence, is not enough; D fails because A qualifies. Other statutory exceptions include complete and final renunciation of the world and a competent court's declaration of unsoundness of mind.

Revise: Hindu Adoptions and Maintenance Act 1956, s.7.

All-set question and key cross-reference

Each cell shows question number / supplied answer. Letters refer only to their own set. This table reproduces the supplied marking key; it does not incorporate the legal corrections above.

A	B	C	D	A	B	C	D
1 / A	60 / B	67 / C	2 / A	26 / C	99 / C	11 / B	23 / D
2 / C, D	75 / C, D	84 / A, C	91 / A, D	27 / D	89 / D	47 / A	18 / A
3 / B	38 / C	88 / A	20 / D	28 / D	67 / A	98 / C	68 / D
4 / B	7 / C	74 / A	4 / B	29 / D	58 / A	92 / C	77 / A
5 / A	51 / D	38 / D	12 / C	30 / C	52 / B	3 / A	76 / C
6 / D	40 / B	6 / A	31 / A	31 / A	46 / C	43 / D	80 / C
7 / A	69 / A	2 / C	11 / B	32 / A	11 / C	8 / B	27 / A
8 / A	57 / B	26 / B	100 / A	33 / D	91 / D	76 / C	8 / B
9 / D	31 / A	81 / C	50 / B	34 / D	62 / B	65 / C	82 / B
10 / C	8 / D	75 / A	3 / D	35 / D	20 / B	52 / C	28 / D
11 / A	81 / C	49 / B	85 / B	36 / C	66 / D	87 / C	71 / B
12 / D	71 / B	28 / B	98 / B	37 / A	56 / A	89 / A	34 / B
13 / D	53 / B	21 / D	69 / D	38 / B	4 / B	4 / D	94 / A
14 / C	9 / D	14 / D	58 / C	39 / A	33 / C	57 / B	32 / C
15 / C	59 / D	68 / D	25 / D	40 / B	98 / B	16 / C	19 / C
16 / D	48 / B	51 / B	48 / B	41 / D	86 / D	61 / B	37 / B
17 / A	24 / A	42 / C	51 / A	42 / D	43 / B	86 / B	87 / C
18 / D	70 / A	60 / A	40 / B	43 / B	3 / C	95 / A	79 / A
19 / C	61 / A	85 / A	15 / B	44 / B	1 / C	53 / C	54 / C
20 / A	41 / B	10 / C	9 / C	45 / B	14 / B	63 / C	30 / B
21 / C	15 / A	1 / B	83 / A	46 / D	37 / D	15 / C	1 / A
22 / B	80 / C	94 / C	78 / A	47 / C	18 / B	33 / D	21 / C
23 / D	87 / C	80 / B	33 / B	48 / A	39 / A	90 / B	41 / B
24 / A	16 / C	91 / C	29 / B	49 / B	76 / C	24 / A	64 / C
25 / A	83 / A	70 / B	59 / A	50 / D	77 / D	56 / B	22 / B

A	B	C	D	A	B	C	D
51 / A	90 / A	25 / C	7 / C	76 / A	13 / D	30 / B	75 / C
52 / B	23 / A	46 / D	43 / D	77 / C	92 / D	39 / A	62 / B
53 / C	36 / D	96 / B	96 / B	78 / C	97 / B	17 / A	67 / D
54 / B	78 / D	77 / C	65 / A	79 / B	88 / C	19 / C	17 / B
55 / C	79 / D	20 / B	74 / C	80 / A	63 / A	73 / B	38 / B
56 / C	32 / B	41 / B	97 / C	81 / B	72 / A	79 / D	42 / C
57 / B	93 / C	48 / D	6 / B	82 / A	21 / C	22 / A	61 / A
58 / A	50 / B	83 / B	36 / D	83 / B	54 / A	100 / C	35 / C
59 / C	49 / B	82 / A	26 / D	84 / B	10 / D	72 / D	14 / D
60 / C	27 / B	5 / C	99 / C	85 / D	74 / C	12 / D	44 / A
61 / B	26 / A	58 / C	93 / A	86 / C	28 / B	64 / C	66 / A
62 / D	84 / A	13 / A	45 / B	87 / D	42 / C	23 / D	60 / C
63 / A	25 / B	32 / A	52 / D	88 / C	30 / C	69 / D	63 / C
64 / B	95 / D	59 / A	39 / C	89 / C	47 / A	50 / B	49 / C
65 / A	12 / A	34 / A	86 / A	90 / B	94 / D	54 / B	55 / A
66 / A	2 / A	7 / B	53 / D	91 / B	55 / C	31 / B	84 / C
67 / D	44 / C	55 / B	56 / D	92 / A	96 / C	27 / C	5 / A
68 / A	22 / B	18 / A	46 / C	93 / B	73 / D	40 / B	73 / D
69 / C	17 / D	45 / D	88 / B	94 / D	65 / C	66 / C	70 / A
70 / C	19 / C	35 / A	47 / A	95 / C	5 / C	99 / C	13 / A
71 / B	6 / D	29 / B	90 / B	96 / D	45 / B	36 / C	10 / D
72 / C	29 / A	44 / B	89 / B	97 / B	68 / B	78 / A	81 / A
73 / B	82 / A	71 / D	92 / A	98 / D	85 / A	62 / B	57 / A
74 / C	34 / A	97 / A	72 / A	99 / D	35 / C	37 / B	16 / B
75 / B	100 / C	9 / C	24 / A	100 / A	64 / B	93 / A	95 / B

Sources and verification limits

Primary legislation and judgments take priority over answer-explanation websites. The entries below include official publishers and identified reproductions of primary texts. They are not a claim that every source covers every question. The uploaded papers and key supply all question text, option order and marking answers; the syllabus image supplies the official-looking allocation reproduced here. No multi-year trend analysis was possible from these attachments.

Exam context

Official AIBE website, final-key announcement of 10 July 2026. This establishes the announcement, not a byte-for-byte authentication of the uploaded PDF.

Open source

Q24, 77, 89, 92, 98

India Code, Bharatiya Sakshya Adhiniyam 2023: scope, definitions, certification, burden and private documents.

Open source

BNSS questions, especially Q45, 75, 87

Ministry of Home Affairs, official BNSS text, especially ss.173, 176, 258 and 290.

Open source

BNS questions

Ministry of Home Affairs, official BNS text.

Open source

Q44

Specific Relief Act s.20, statutory text reproduced by eCourtsIndia; read notice and compensation subsections together. Government-hosted full PDF retrieval timed out.

Open source

Q59

Transfer of Property Act s.18, statutory text reproduced on Indian Kanoon.

Open source

Q76

Indian Contract Act, Delhi District Courts official statutory page; search-index excerpt for s.135 retrieved, full page timed out.

Open source

Q30

Faqir Chand Gulati v. Uppal Agencies, Supreme Court judgment, 10 July 2008, reproduced on Indian Kanoon.

Open source

Q13

Harish Chandra Tiwari v. Baiju, Supreme Court judgment, 8 January 2002, reproduced on Indian Kanoon.

Open source

Q31

Karnataka State Bar Council reproduction of BCI Rules, Rule 8.

Open source

Q60

Uttarakhand government, UCC Rules 2025 English, Rule 5(3)(a)(i).

Open source

Q95

Copyright Office, Copyright Act Chapter V, s.24.

Open source

CPC authority index

India Code, Code of Civil Procedure 1908. For detailed revision use the Orders and Rules cited in each entry.

Open source

Other authority lines

Each question also identifies the relevant Act, section, rule or case for follow-up. Historical attributions and exact quotations in Q40, Q46, Q47 and Q80 are not presented as fully source-verified. For an actual examination score, the examiner's published final key governs; for learning, retain the distinctions and corrections in this guide.